

CIVIL PROCEDURE

Introduction

Broadly speaking, civil procedure consists of the rules by which courts conduct civil trials. "Civil trials" concern the judicial resolution of claims by one individual or group against another and are to be distinguished from "[criminal trials](#)," in which the state prosecutes an individual for violation of criminal law.

"Procedure" is to be distinguished from "substantive law" in that substantive law defines the rights and duties of everyday conduct. Substantive law includes [contract law](#), [tort law](#), and so on.

A procedural system provides the mechanism for applying substantive law to real disputes. A good procedural system should provide guidelines as to what information is received by the judge or jury, how that information is to be presented, and by what standards of proof ("beyond a reasonable doubt," "by clear and convincing evidence," "by a preponderance of the evidence") the information will be adjudged. A good procedural system ensures that similar cases will be treated similarly by the courts.

In his work, Scotch Reform (1808), Jeremy Bentham presented a utilitarian notion of Civil Procedure as the need "To Supply Justice to all at least Expense". Basing on his utilitarian approach which largely clouded his adjectival writings, Bentham classifies the ends of procedure into direct and collateral ends.

Bentham explains the direct ends as 'giving execution and effect to the predictions delivered, to the engagements taken, by the other branch, the main or *substantive* branch of the law: viz. by decisions pronounced in conformity to it.' He views the 'collateral' ends as 'prevention of delay, vexation and expense, in so far as superfluous or preponderant'. He therefore views the overarching end of procedure as the prevention of misdecision or a failure of justice.

Although the many suits filed in Uganda may be settled before trial through negotiated settlements or arbitration, "civil procedure" *strictly* defined applies only in formal courts of law.

Procedure has two basic branches: - The Law of evidence and the Law of procedure. Evidence deals with proof of facts while procedure regulates steps to be taken by parties during litigation from the time the plaintiff commences proceedings to the time when, if successful, wishes to enforce the judgment he or she obtains against the

defendant. These steps include commencement of proceedings, issue and service of court process or documents, trial and other applications. It also includes giving of judgment and enforcement of the same, costs, appeals, review and revision.



Procedure also includes non litigious methods of resolving disputes which inter alia include negotiation, arbitration and reconciliation.

Procedural rules must also be in conformity with rules of natural justice by which each party is allowed to present his/her arguments before a judgment is given.

Article 28(1) of the Constitution provides that:

“In the determination of civil rights and obligations or any criminal charge, a person shall be entitled to a fair, speedy and public hearing before an independent and impartial court or tribunal established by law.”

ORGANIZATION AND HIERARCHY OF COURTS

The Ugandan judicial system refers to the court structures which range from the Local Council courts to the Supreme Court. Under Article 126 of the Constitution all courts in Uganda derive their Judicial power from the people, and this power shall be exercised by the courts established under the constitution in the name of the people and in conformity with the law and with the values, norms and aspirations of the people.

The Constitution further provides in article 129(1) for establishment of courts of judicature which shall consist of: -

- a) The Supreme Court.
- b) The court of Appeal
- c) The High Court.
- d) Such subordinate courts as parliament may by law establish, including quardir courts. Under the category of subordinate courts, we have the following courts established under the M.C.A. cap 16.
 - a) The Chief Magistrate.
 - b) Magistrate Grade I
 - c) Magistrate Grade II
 - d) Magistrate Grade III (have been scrapped)

In addition we also have L.C. Courts established under the Local Council Courts Act 2006.

It is important to note that there are certain courts in form of tribunals which are outside the normal hierarchy of courts of law which are given jurisdiction over several matters for example:

- (i) Non performing Assets recovery Tribunal (N.P.A.R.T) whose mandate has since expired.
 - (ii) Tax Appeals tribunals.
 - (iii) Industrial Court.
 - (iv) Court Martial
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- (v) Police Disciplinary Court
- (vi) Electricity Tribunal
- (vii) Communication Tribunal
- (viii) 77Land Tribunals (currently suspended).

It should be noted that the legislation creating or establishing a specific court, will normally give the procedure to be followed and the jurisdiction which may be covered by that court.



The jurisdiction of the courts established under the constitution is specified there under and also under the judicature Act.

COMMENCEMENT OF PROCEEDINGS

Preliminary Considerations

Where negotiations fail, the aggrieved party may commence proceedings against the other person or party. It is always advisable that serious thought is taken of the consequences of instituting a case. Civil proceedings in Uganda are normally lengthy because of inefficiency and bureaucracies involved in the judicial system. Litigation is also notoriously expensive and can cause considerable financial embarrassment to the party ordered to pay costs of the suit. As a result of this courts have insisted that the parties explore possible avenues for having the matter settled amicably before full litigation can start.

It is normally advisable that a party should demand from the prospective defendant to stop the breach or put right the wrong which has been committed. In practice this is done through a demand letter which also serves as a notice of intention to sue.

Failure to serve a notice of intention to sue may disentitle an advocate to costs and its importance cannot be over emphasized (See Rule 39 of the Advocates (Remuneration and Taxation of Costs) Rules SI 267-4). It states that:

“If the plaintiff in any action has not given the defendant notice of his or her intention to sue, and the defendant pays the amount claimed or found due at or before the first hearing, no advocate’s costs shall be allowed except on an order of the judge or magistrate.”

The service of notice of intention to sue must be covered in the plaint by including a paragraph to the effect that it was duly communicated.

When commencing proceedings, decisions have to be made about which appropriate court and type of procedure to use. Care though has to be given to the following issues: -

- Whether there is a triable issue i.e whether the wrong for which the plaintiff intends to sue is one for which substantive law provides a remedy.
- Which court has jurisdiction in the matter, including where the cause of action arose.
- The prospective plaintiff must also ensure that he has *locus standi* and that the intended defendant is a proper defendant to the action.
- The litigant has also to decide who should be named in the proceedings and precisely what claims should be made against each of them.

In addition, the prospective plaintiff must ensure that the action is brought in time and that it is not premature. This is because the Limitation Act prescribes the period within which certain actions must be taken to a court of law.

Actions before court may be commenced by any of the following originating process.

a) Ordinary suit (by plaint or statement of claim)



- b) Originating summons
- c) Notice of motion.
- d) Petition
- e) Chamber summons

PLAINT IN AN ORDINARY SUIT

This is the usual method of commencement where there is a substantial dispute as to facts. It is preferable that the person institutes an ordinary suit which is normally by way of plaint. The procedure is provided for under Order 4 of the Civil Procedure Rules. The suit is instituted by way of plaint which must comply with the rules contained in Orders 6 and 7 so far as applicable. The main feature of the ordinary suit is the exchange between the parties of written pleadings as a result of which they join issue upon questions of fact.

This procedure differs from that under Order 36 which deals with summary procedure. Under summary procedure, there is usually no substantial dispute as to the facts in issue.

ORIGINATING SUMMONS

Under this procedure, a string of questions are usually presented to the court for determination. The main advantage of originating summons is that the proceeding is usually speedy than an action by way of plaint. Under such a proceeding, there are no pleadings and usually no witnesses. Evidence is given by way of affidavit and normally there are no interlocutory applications such as discovery.

Under O.34 CPR (which deals with interpleader proceedings) for example, originating summons procedure is most suitable where there is no substantial dispute on the facts and there is only a disagreement as to the legal consequences arising from the undisputed facts.

The body of the originating summons must be drafted clearly and objectively in order to achieve its purpose. In particular it must define the issues and include a statement of the questions on which a plaintiff seeks a determination for the directions of the court and he must also include a concise statement of the relief or remedy claimed with sufficient particulars to identify the cause or causes of action.

NOTICE OF MOTION AND CHAMBER SUMMONS

This procedure relates to interlocutory applications. Under 0.52 r1 CPR all applications to court save where otherwise expressly provided for in the Civil Procedure Rules shall be by motion & shall be heard in open court.

Some of such applications may be made by this method are:

- Applications for judicial review
- Application for Habeas corpus
- For the redress of breach of fundamental Human Rights under the constitution.



There is a **general rule**: that where a statute or legislation provides for an application to be made to court but does not specify the form in which it is to be made and the rules do not expressly provide for any special procedure, the application may usually be made by notice of motion (Order 52 rule 1 CPR).

There are conflicting decisions on whether or not a notice or motion must be signed by court. As a rule, all notices of motion must be signed by the party or his/her advocate. The major distinction between a motion and chamber summons is that a chamber summons is issued by the authority of court and regarded on a command directed by the court concerned but a motion is usually brought by a party seeking some form of relief or remedy from court and must therefore be signed by him in the same way as a notice of appeal or a plaint.

A Notice of motion must contain the grounds of application that have to be set out. The evidence in support of a Notice of motion must be by an affidavit and such copy of an affidavit must be served with a motion since a motion cannot stand without an affidavit. It should be noted however that an affidavit may not be necessary where an application rests on a matter of law.

Unlike a chamber summons which is to be heard in chambers, a notice of motion will usually be heard in open court.

PETITION

Legislation, a statutory instrument or rules may prescribe that proceedings be commenced by way of petition. The most common types of petitions are those related to company matters provided under the Companies Act and 0.38 CPR. Also matrimonial proceedings under the Divorce Act, succession matters under the Succession Act and also election challenges as provided under the legislations that regulate elections do adopt this procedure.

FILING OF COURT PROCESS

In every magisterial area, there must be a registry in which the person who wishes to file a case can file the relevant court papers.

Similarly in every High Court jurisdiction there has to be a registry where court papers are lodged.

The High Court has created other circuit courts in the different regions of the country namely: Nakawa, Jinja, Mbarara, Masaka, Fort Portal, Mbale, Soroti and Gulu. For details, see the High Court (Circuits) Instrument, SI No. 20 of 2004.

The main feature of these circuit courts is that they handle all matters irrespectively and without separation and all these circuit courts have deputy registrars who are in charge of filing, and where there is no such registrar, then the chief magistrate acts as the registrar.

Before a party files any court process at any registry, he or she is supposed to pay the court fees or filing fees which are set out in the Court fees Rules and these must be paid spontaneously



(See: *The Judicature (Court Fees, Fines and Deposits) Rules, SI 13-3*). These days, the fees are paid directly in the bank and evidenced by a receipt from the Uganda Revenue Authority.

In *Unta Exports v Customs* [1970] EA 648, the action was filed on 14th but the receipt indicated that fees were paid on 16th. Gouldie, J. Held at. Page 649 that:

“as a matter of practice and of law, documents cannot be filed validly in the civil registry until fees are paid or provided for. In this case the fees had not been paid by the time of filing and in fact were paid out of time; the struck out.”

In *Banco Arabe Espanol v Bank of Uganda* CACA 42/98, the fees were paid shortly after filing the notice of appeal, but within the 14 days limitation. The Court of Appeal held that the notice of appeal was valid provided the fees were paid within the time allowed by the rules.

ISSUE AND SERVICE OF SUMMONS

Under Order 5 Rule 1(1) of the Civil Procedure Rules, it is provided that when a suit has been duly instituted, a summons may be issued to the defendant:

- (a) ordering him to file a defence
- (b) ordering him to answer the claim on the day to be therein specified.

When one is served with summons, he or she must file a defence within fifteen days (Order 8 rule 1(2) CPR).

Accordingly, the summons is referred to as summons to file a defence. According to section 20 of the Civil Procedure Act, when a suit has been duly instituted, the defendant shall be served in a manner prescribed to enter an appearance and answer the claim. The section has in practice been overtaken by the rule which only talks about filing a defence.

The purpose of summons is to notify the defendant that a suit has been filed, to require the defendant to file a defence and also to notify the defendant of the consequences of failure to file a defence.

Under order 5 rule 2, the summons must be accompanied by a copy of the plaint, a summary of evidence, list of witnesses, list of documents and list of authorities.

Under order 5 rule 1(5) and order 5 rule 8, summons must be signed and also sealed.

Kaur v Auction City Mart [1967] EA 108

Jones J said that the requirement of signing and sealing the summons under order 5 rule 1(3) (equivalent of Order 1 rule1 (5)) of the Civil Procedure Rules are mandatory and failure to comply with them renders the summons a nullity. The case dealt with a Notice of Motion below which was written “This Summons....” the case also said that there is a rebuttable presumption that the person signing summons as acting deputy chief registrar has been duly authorised.



In *Nakitto v Katumba* [1983] HCB 70, Kityo, J said that “notice of motion” fell within the meaning of suit as used and defined in s.2 of the Civil Procedure Act and therefore non-compliance with order 5 of the Civil Procedure Rules made the application a nullity. This notice of motion was not signed by a judge or such officer nor sealed by the court.

In *Kaigana v Dabo* [1986] HCB 59, Karokora J said that although in practice notices of motion carry signatures of the judge and the seal of the court, these are not a legal requirement and omission does not render the application fatal. The applicant was properly before court as it was duly signed by the applicant’s advocate who was moving the court to hear the application.

Under order 5 rule 2, service of summons shall be effected within 21 days of the date of issue. The 21 day period can be extended by application to court within fifteen days of the expiry of the 21 days.

Under Order 5 rule 3(a) and (b) the suit will be dismissed if no application has been filed and the 21 days have expired.

SERVICE OF SUMMONS

It is the responsibility of each party to prepare, produce and serve his/her pleadings upon the opposite party. This is a fundamental feature of the adversarial system of civil litigation of which parties have primary responsibility. Pleadings in courts of law are thus done *inter partes*.

In ordinary pleadings, a party who is dragged to court is issued with a summons which is an official order requiring a person to attend court either to answer to a charge or to give evidence.

The fundamental rule of service of summons is that service of summons must be personal (Order 5 rule 10).

Mode of Service of summons

Order 5 rule 8 deals with the mode of service. It is by tendering or delivering a duplicate duly signed by a judge or appointed officer and sealed by the court.

High Court summons are usually signed by a Deputy Registrar or Registrar and in Magistrates courts by the magistrate. Order 5 rule 7(1) deals transmission of summons for service. The summons are either delivered to a person authorised by court to serve summons, who is called a process server, or to an advocate or advocate’s clerk approved by court, or sent by post to a magisterial area where the defendant resides.

Where a duplicate of the summons is directly delivered and tendered to the defendant personally or to an agent or other person on his behalf the defendant or such agent or other person shall be required to endorse an acknowledgement of service on the original summons in accordance with Order 5 Rule 14.



Under Order 5 Rule 10, service shall be made on the defendant in person unless he has an agent empowered to accept service. In this case, service on the agent will, according to Order 3 rule 3, be deemed to be as effectual as if it had been served on the party himself or herself and the rules relating to service on a party to a suit will apply to service on his or her recognised agent.

Order 5 rule 13 deals with **service upon a member of the defendant's family**. Service could also be effected on any adult member of the family of the defendant who is residing with him or her. See: *Bulenzi v Wandera* [1991] HCB 80

Order 5 rule 14 requires the defendant to acknowledge service and retain a copy of the summons and plaint.

Order 5 rule 16 provides for the **affidavit of service**. After the process server has served the summons, he or she is required to annex the affidavit of service. The format of the affidavit is to be found in Appendix A Form 9.

- The first paragraph states who the deponent is
- The second states that he collected the summons from the court on such and such a day
- The third paragraph states the manner in which the defendant was served and how the defendant was identified.

In *Omuchilo v Machiva* (1966) EA 229, the process server was shown the defendants house at

10.00 am. The defendant was not there and the server fixed the summons on the door purportedly in pursuance to Order 5 rule 15. An affidavit of service was subsequently entered. An application was brought to set aside judgment for the plaintiff. It was held that before service can be effected under rule 15, the process server must first use all and due reasonable diligence to find the defendant or any of the persons mentioned in rules 12 and 13 and it is only after using such diligence, if none can be found that he can affix a copy of the summons on the premises full particulars of which should be given. The judge also commented on the defects in the affidavit of service. He said that it did not mention the person who witnessed the affixing of the summons and further that although not required by the rules, that the affidavit should state the town, street or other particulars of the premises to which the summons were affixed so as to show that the premises were within the jurisdiction of the court. Judgment was set aside and the property ordered to be attached was returned.

That case followed *Erukana Kavuma v Metha* (1960) EA 305.

The process server was told that the defendant was in India. He immediately effected service on the defendants wife and default judgment was entered. The judge was

considering order 5 rule 13 which states that when in any suit the defendant cannot be found, service can be made on an agent or an adult member of the family residing with him. The question was whether the defendant could not be found. The judge said that it was an inadequate ground for saying that the defendant could not be found in the absence any enquiry as to the defendant's address in the country he had gone to, the duration of his stay and the likely dates for his return. The judge said that without these you cannot say that the defendant cannot be found. The ex parte decree was set aside.



See also: *Zakaliya Kiggundu v Leo Kasujja* (1971) HCB 164

Waweru v Kiromo (1962) EA 172

The defendant applied to court to set aside the service of summons on the ground that the affidavit of the process server stated that the summons had been left with the defendant's wife with instructions that she should keep it for her husband as he was not present at the time. It was held that as the process server made no enquiry about the defendant's whereabouts, it could not be said that he could not be found, so as to allow service on his wife under Order 5 rule 13.

These cases show that service on wives without due enquiry is defective service.

In *Chakubhai v Chotobhai*, service was effected upon the defendant's agent. It was evident that this agent was not authorised to accept service but that he had taken the summons to the defendant. This came to light because the defendant had gone to see the defendant holding the summons and the plaint and asking for more time. Judgment was entered in default and the defendant brought an application to set aside the judgment on the ground of lack of service. The ex parte decree was set aside but the judge declined to give the defendant the costs of the application because he held the defendant's attitude unworthy. The court referred to the case of *Cohen v Das* which talks about the steps which can be taken before you can conclude that the defendant cannot be found.

These cases require that full inquiries be made including when the person is expected to come back.

Service upon corporations

The relevant order is Order 29 of the CPR. What is meant by corporation is any legal entity not being a natural person and being a creature of statute or of incorporation under the Companies Act.

Where the service is upon a Corporation the summons will be served on the secretary or any Director or other principal officer of the corporation.

Alternatively, service may be effected by leaving or sending a copy of the summons by post addressed to the corporation at the registered office or if there is no registered office, then at the place where the corporation carries business in accordance with O.29 R 2 CPR.

Order 29 rule 2 recognises that the parent legislation of a statutory corporation may provide for special rules for service on that corporation.

Order 29 rule 2 (a) of the CPR provides that summons may be served on the secretary or any director or other principal officer of the corporation. Under paragraph (b), service may be effected by leaving the summons or by post addressed to the corporation at the registered office, or if there is no registered office, at the place where the corporation carries on business.



For example under the Islamic University in Uganda Act, Cap. 131, s. 67 provides that: “Any document may be served on the university by leaving it at the office of or by sending it by registered post to the secretary.”

See also s.30 of the Management Training and Advisory Centre Act, Cap. 134, which provides that:

“Any document may be served on the centre by leaving it at or by sending it by registered post to the director of the centre at the head office of the centre.”

In *Musajjalumbwa v Bitumastic* [1982] HCB 103, Service was effected upon a clerk at the reception. The service was acknowledged. The affidavit of service did not say who the clerk was or who pointed him out for the service. Default judgment was entered and an application was brought to set it aside. It was held that the service was improper and it did not comply with the equivalent of Order 29 rule 2. It was not stated who introduced the clerk nor was it stated that the clerk signed for the company. The judgment was set aside with costs.

In *Ijjala v Energo Project* [1988-90] HCB164, service was tendered to the project manager who was identified by a police officer. The project manager instructed the secretary who took the summons to the responsible officer who accepted service and put the company stamp. It was held that no evidence was held to rebut the plaintiff's assertion that the summons were left at the place of business and therefore the service was good.

Okurut v Lwasa

Service was effected upon the General manager's Secretary. It was acknowledged with the company's stamp. It was held that the General Manager's Secretary was not a Secretary within the meaning of order 26 rule 2 (Order 29 rule 2).

In the case of *Musajjalumbwa v Bitumastic* [1982] HCB 103, the judge seemed not to have addressed himself to Order 29 rule 2(b) which seems to have been satisfied since the summons were left in the company office. It is also thought that the issue will depend on the affidavit of service which should clearly indicate which order was being complied with.

See also: Matiansi Kanimba v Suryankati Patel HCCS
 1145/1972 MB Automobiles v Kampala Bus
 Service [1966] EA 480

Service upon a partnership

A partnership is a special legal creature. Service upon it is provided for under Order

30 rule 3 which provides that:

“(1) Where persons are sued as partners in the name of their firm, the summons shall be served—

(a) upon any one or more of the partners;

(b) at the principal place at which the partnership business is carried on within Uganda upon any person having, at the time of service, the control or management of the partnership business there; or

(c) as the court may direct.



(2) The service shall be deemed good service upon the firm so sued, whether all or any of the partners are within or without Uganda; except that in the case of a partnership which has been dissolved to the knowledge of the plaintiff before the institution of the suit, the summons shall be served upon every person in Uganda whom it is sought to make liable.”

Service upon counsel

This is provided for in Order 3 rule 4 which provides that:

“Any process served on the advocate of any party or left at the office or ordinary residence of the advocate, whether the process is for the personal appearance of the party or not, shall be presumed to be duly communicated and made known to the party whom the advocate represents, and, unless the court otherwise directs, shall be as effectual for all purposes as if the process had been given to or served on the party in person.”

Beliram v Salkand [1954] 27 KLR 28

Service on Government

Service of process upon the government must be on the Attorney General in accordance with section 11 of Government Proceedings Act, Cap. 77.

Under the Civil Procedure (Government Proceeding) Rules it is provided that service on the Attorney General shall be effected by delivery or sending the summons to the office of the Attorney General and shall not be deemed complete until the Attorney General or another officer of the government entitled to practice as an advocate in relation with the duties of his office has acknowledged service of summons.

Time of service

This is provided for under Order 51 rule 9 of the CPR which provides that:

(1) Service of pleadings, notices, summonses, other than summonses on plaintiffs, orders, rules and other proceedings shall normally be effected before the hour of six in the afternoon, except on Saturdays when it shall normally be effected before the hour of one in the afternoon.

(2) Service effected after the hour of six in the afternoon on any weekday except Saturday shall, for the purpose of computing any period of time subsequent to the service, be deemed to have been effected on the following day; service effected after the hour of one in the afternoon on Saturday shall for the like purpose be deemed to have been effected on the following Monday.

Wasswa v Ochora [1991] HCB 47

Service was accepted on a Sunday. It was held that under Order 47 (now 59) rule 9 no

service can be effected on Sunday therefore such service was void.

The decision is doubtful because Order 51 rule 9 does not apply to service of summonses on plaintiffs.

Eseza Namirembe v Musa Kizito (It followed *Craig v Kansen*)

A hearing notice had been instituted by originating summons. Court quoted Craig's case thus:



“an order founded on a failure to serve summons is not a mere irregularity. It is a fundamental breach of the principles upon which English justice is founded”.

Affidavits of Service

Whenever a summons has been served, the person who effected service must swear an affidavit of service stating the time and the manner in which the summons was served and the address of the person if any identifying the person served and witnessing the delivery or tender of the summons.

Order 5 rule 16 provides that:

“The serving officer shall, in all cases in which the summons has been served under rule 14 of this Order, make or annex or cause to be annexed to the original summons an affidavit of service stating the time when and the manner in which the summons was served, and the name and address of the person, if any, identifying the person served and witnessing the delivery or tender of the summons.”

In *M.B. Automobiles V Kampala Bus Service (1966) E.A 480*, It was held that disclosure of the name and the place of the person who identifies the defendant and witnesses the delivery or tender of the summons to the applicant at the material time is a statutory duty under order 5 rule 17. Court noted that failure to record the name and address of the person, identifying the person to be served renders the affidavit of service incurably defective.

The process server must know the person being served and must indicate how he came to know him or if he is directed, then he should name the person who knows him.

Substituted Service

The general rule is that where the court is satisfied for any reason that the summons cannot be served as the ordinary way, the court shall order substituted service in such a manner as it deems fit. Such services can take the form of advertisement in newspapers or affixing a copy in some conspicuous place in court or part of his house or residence.

This is provided for under Order 5 rule 18 which provides that:

“(1) Where the court is satisfied that for any reason the summons cannot be served in the ordinary way, the court shall order the summons to be served by affixing a copy of it in some conspicuous place in the courthouse, and also upon some conspicuous part of the house, if any, in which the defendant is known to have last resided or carried on business or personally worked for gain, or in such other manner as the court thinks fit.

(2) Substituted service under an order of the court shall be as effectual as if it had been

made on the defendant personally.

(3) Where the court makes an order for substituted service, it shall fix such time for the appearance of the defendant as the case may require.”

The anomaly in the provision is that the court can under sub rule 3 fix such time as for filing a defence.



The application for Substituted service is normally made by summons in Chambers ex parte. (Order 5 rule 32)

The applicant must have exercised all due and reasonable diligence. The application should also specify the mode in which service is now sought to be effected.

The term “cannot be served in the ordinary way” includes the case where the defendant having knowledge of existence of summons evades service.

The affidavit support of such application must state the date when the summons was issued, the occasion on which personal service of summons was attempted, the facts upon which inference of evasion of service are based, the believed address of the defendant and the fact that substituted service is the best method by which the summons will come within the defendant’s knowledge.

After the order is made and complied with, service is deemed to be effective as if it were done personally on the defendant - Order 5 rule 18(2) CPR

See: Jaffer v Weraga [1975] 2 ULR 188

In *Toto v Kateba*, the application was dismissed on the ground that the affidavit was incompetent as it did not state the efforts taken by the applicant to find the defendant.

Service on Special Category of Defendants

Order 5 rule 19 deals with service on defendant in prison. It provides that :

“Where the defendant is confined in a prison the summons shall be delivered or sent by post or otherwise to the officer in charge of the prison for service on the defendant.”

Order 5 rule 20 deals with service on public officers and soldiers. It provides that:

“(1) Where the defendant is a public officer in civil employ, or is the servant of a railway company or local authority, the court may, if it appears to it that the summons may be most conveniently so served, send it for service on the defendant to the head of the office in which he or she is employed, together with a copy to be retained by the defendant.

(2) Where the defendant is a soldier, the court shall send the summons for service to his or her commanding officer, together with a copy to be retained by the defendant. For the purposes of this rule, “soldier” shall not include an officer.

The duty of the person to whom the summons is sent under those two rules is set out in rule 21 which provides that:

“(1) Where a summons is delivered or sent to any person for service under rule 19 or 20 of this Order, that person shall be bound to serve it, if possible, and to return it

under his or her signature with a written acknowledgment of the defendant, and the signature shall be deemed to be evidence of service.

(2) Where from any cause service is impossible, the summons shall be returned to the court with a full statement of the cause and of the steps taken to procure service, and the statement shall be deemed to be evidence of non-service.”



Service of Summons outside the Jurisdiction

This is provided for under Order 22 which provides that:

“Service out of the jurisdiction of a summons or notice of a summons may be allowed by the court whenever—

- (a) the whole subject matter of the suit is immovable property situated within the jurisdiction, (with or without rents and profits);
- (b) any act, deed, will, contract, obligation or liability affecting immovable property situate within the jurisdiction is sought to be construed, rectified, set aside or enforced in the suit;
- (c) any relief is sought against any person domiciled or ordinarily resident within the jurisdiction;
- (d) the suit is for the administration of the personal estate of any deceased person, who at the time of his or her death was domiciled within the jurisdiction, or for the execution (as to property situate within the jurisdiction) of the trusts of any written instrument, of which the person to be served is a trustee, which ought to be executed according to the law of Uganda;
- (e) the suit is founded on any breach or alleged breach within the jurisdiction of any contract wherever made which, according to the terms of the contract, ought to be performed within the jurisdiction;
- (f) any injunction is sought as to anything to be done within the jurisdiction, or any nuisance within the jurisdiction is sought to be prevented or removed, whether damages are or are not also sought in respect thereof;
- (g) any person out of the jurisdiction is a necessary or proper party to a suit properly brought against some other person duly served within the jurisdiction; or
- (h) the suit is founded on a tort committed within the jurisdiction”.

See also rules 28 and 30

Expiry of Summons

Where a summons was issued by court, and the person who is supposed to serve fails to serve within the specified date. Such summons shall expire. The summons once issued by court are valid for 21 days and they must be returned to court for renewal through an application to extend the time. However there must be good reason for the delay in service to be shown before court before such an application for renewal is granted. The court may then issue fresh summons or renew the summons issued earlier on such conditions as it may deem fit.

PARTIES TO A SUIT

A party to a suit may be a plaintiff, defendant, applicant or appellant, respondent among others depending on the type of proceedings.

The word party is a technical word in civil proceedings which is generally understood but difficult to define. Normally a party is a person who on the record of the court has commenced the proceeding or has been served with the summons or any other such application or has been added by order of court.

The term party may also be used to designate the person seeking to present a plaint or establish a cause of action as well as the person against whom it is sought to impose a corresponding duty or liability.

In a representative action a person represented but not named as a party is also considered to be a party and such a person may be substituted and named as a party.

CAPACITY TO SUE OR BE SUED

The determination of whether a person is capable of suing or being sued is governed by the substantive law.

While most natural persons may sue or be sued, limitations exist with regard to certain types of natural persons such as children, incompetent persons, Aliens and convicts.

Natural persons

Natural persons who are mentally competent may sue or be sued without limitation except in cases of death of such a person, when he or she may cease to exist as a party and actions on behalf of his or her estate are taken in a representative proceeding by the executors or administrators of the estate.

While alive, a natural person may be a party to a proceeding in his given, assumed or fictitious name. When an alias is used a party should be described by using his proper names followed by the alias.

When a father and son have the same names, it will generally be assumed in absence of a prefix that the father is intended.

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A party must be described by name and not mere descriptions such as administrators of X' s estate without naming the individual administrators.

It is not legally possible for an agent to institute a suit in his or her own name without the principal' s authority.

This was held in the case of *Oriental Insurance Brokers Ltd Vs Trans Ocean Uganda Ltd* H.C.C.S. No. 250/93 *unreported*.

SUITS BY MINORS

Minors cannot bring suits of their own accord until they attain the age of majority. A minor is a person who has not attained the age of majority which may either be 18 or 21 depending on the jurisdiction. In such circumstances a minor sues by his or her next friend or defends by his or her guardian ad item.

Order 32 Rule1 of the Civil Procedure Rules requires that every suit by a minor must be instituted in his or her name by a next friend.

A next friend must sign a written authority which is to be filed together with the plaint. The next friend or guardian ad item must act by an advocate who must certify that he knows or believes the person to whom the certificate relates to be a minor and that the person consenting to be a next friend or guardian ad item has no interest in the action which is adverse to that of a minor.

According to the case of *Jing v Kangiza* 1974 H.C.B. 294, Court held that pleadings filed on behalf of a minor without authority of a next friend will be taken off the file by the court. Where a minor is represented by an advocate, failure to file authority of a next friend and the plaint is taken off a file, court may order costs to be paid personally by counsel.

The person appointed as a next friend may be personally liable for costs if they are awarded against the plaintiff although he has the right of indemnity against the minor. On the other hand, a guardian ad item is personally liable for costs only where he has been guilty of negligence or misconduct.

The next friend is an officer of the court appointed to look after the interests of an infant in the conduct of proceedings. A next friend has no power to consent to the dismissal of an action or to the withdrawal of the suit without the court' s approval.

A next friend cannot retire without the consent of the court and it is immaterial that all parties to the action have given their consent. A person retiring from being a next friend may be required by the court to give security for costs incurred during his term

of office. Court can grant an application by next friend to withdraw on the ground that he or she will be liable for costs (Order 32 rule 8).

Where an infant who is a plaintiff in an existing action comes of age his next friend should not take any further proceedings in the action. The former infant or minor may either adopt or



repudiate the proceedings within a reasonable time. On electing to adopt the proceedings an infant in becoming of age should file in the registry of court a notice to the effect that he has attained the age of majority and adopts the proceedings begun or defended on his/her behalf. A copy of this notice should be delivered on the other parties (Order 32 rule 12).

MENTALLY INCOMPETENT PERSONS

These may include, idiots and lunatics. An idiot is one who has suffered incapacity from birth where as a lunatic is one who has become insane after birth and where incapacity is temporally. In addition there is a general term of madness which denotes incapacity of mind that is complete and permanent and all these are normally compounded under a general term persons of 'unsound mind'.

Under Order 32 Rule 15 mentally incompetent persons may commence an action in the same way as a minor through a next friend or defend a suit by a guardian ad item.

Where a mentally incompetent person without a representative commences proceedings, an application should be made by a defendant to stay the proceedings until a next friend is appointed. Where there is doubt or dispute as to mental disability of a party, an application should be made to the court to determine if incompetence exists. This was stated in the case of *Porter V Porter (1888) 37 Ch. D 420*.

Where the party becomes mentally incompetent during the pendency of a proceeding, the proceeding is stayed but not discontinued since the incompetent party is unable to revoke the previous authority given to his counsel to commence or defend the proceeding. Where a next friend is appointed during the incompetence and later the incompetent person recovers, he or she should apply for an order to discharge the appointment of a next friend or guardian ad item.

COMPANIES AND STATUTORY PERSONS AS PARTIES

This is generally governed by **Order 29** of the Civil Procedure Rules. An incorporated company can be a party to an action. Any company incorporated by an Act of parliament may sue or be sued in its corporate name. Before institution of an action involving a company, it is advisable to ascertain from the Registrar of Companies or from the Act of incorporation the proper and correct names for the company. If the correct name of the corporate party is not used in the pleadings and summons, then it is possible that, that company may raise an objection that the corporate party sued was non-existing.

The change of a name of a company does not render defective any legal proceedings instituted by or against the company. Any legal proceedings may be continued or commenced against the company by its new name. To bring a suit in the name of a

company there has to be a special resolution first by the company authorizing the institution of such a suit. However where a director instructs an advocate, then he is deemed to have authority to authorize the institution of such a suit even if there is no resolution.

In the case *Bugerere Coffee Growers v Sebaduka* 1971 EA 147 court noted that for a company to bring a suit, it is necessary that a resolution must be passed either at the general board meeting



or at the general assembly meeting and this must be reflected in the minutes. This case further noted that where an advocate brings proceedings without the authorization of the company then he becomes personally liable to the defendants for costs of the action.

However in the case of *United Assurance Company Ltd SCCA No. 1/86 the Wambuzi*, CJ. held against the decision in *Sebaduka's* case and noted that a resolution was only one way of proving the decision of the Board of Directors and that unless the law specifically insisted on a resolution, he was not prepared to insist on it. He noted that authority to bring an action in the name of the company is not one of those instances where the Company's Act required a resolution.

Where a company is in liquidation or in receivership, the liquidator/receiver may sue in the name of the company. A corporation which has ceased to have any juristic existence cannot sue or be sued.

GOVERNMENT

All civil proceedings by the state are instituted and prosecuted in accordance with the rules of the respective court and the Government Proceedings Act. Any person has a right to sue government, subject to the Government Proceedings Act. Section 10 of the G.P.A. provides that: "*Civil proceedings by or against the Government shall be instituted by or against the Attorney General.*"

REPRESENTATIVE PARTIES DECEASED PERSONS

A deceased person cannot commence or defend an action. In the case of an estate of a deceased person, administrators or executors become the proper persons or parties to bring an action or to defend an action of a deceased person. The rules of court provide that administrators or executors of the estate of a deceased person may sue or be sued on behalf of the estate without joining any of the beneficiaries (Order 31 rule 1 CPR).

The administrator of an estate of a deceased person is appointed by grant of letters of administration while the executor is named in a will and is appointed by court through the grant of probate.

When administration of the estate is not taken out by the immediate members of the family as specified in the Succession Act a creditor or a person having a cause of action against the estate may apply for the grant (See sections 202 and 203 of the

Succession Act and section 4 of the Administrator General's Act).

Where there is more than one administrator all must be made parties (Order 31 rule 2 CPR).

TRUSTEES

A trustee is a person engaged in Administrative duties with regard to property entrusted to him for the benefit of others. Trustees may be individuals or corporations who have been given power so to act. A person may be appointed a trustee under a will. Where a person is appointed



in a dual capacity of an executor & trustee, the estate of the deceased person is vested in the executor first and after the fulfilment of his duties and an executor, he thereafter becomes a trustee to carry out the trust set up under the will including the distribution of the estate to the beneficiaries. Another person may become a trustee under an express instrument or under the law of Agency, bailment or trusts and also by law under the Public Trustees Act.

UNINCORPORATED ASSOCIATIONS

These may include, clubs, trade unions, employer associations or General associations. An association consists of a number of persons voluntarily united together by common interest in order to promote certain objectives for their mutual benefit. A club is an association of people, formed for a common purpose other than profit making, such as promoting knowledge, art or social activities.

In such situations a member does not become liable to pay funds of a club beyond the subscription fee required by the constitution of the club.

An association or club that has not obtained corporate or quasi corporate status by statute has no legal existence apart from its members. It is not a legal entity nor is it an association of persons carrying on business in common with a view of making profit.

An unincorporated association is not a legal entity capable of suing or being sued. Any proceeding against such an entity is a nullity and not a mere irregularity which may be waived by filing the defence.

However trustees of the property of an unincorporated association may sue or be sued in respect of the property vested in them since the trustees are considered to represent the members' beneficial interest in the property.

PARTNERSHIPS

Under **Order 30 rule 1 CPR**, partnerships may sue or be sued in the firms' name or alternatively in the names of the individual partners. Whenever there is doubt about the membership of the partnership, it is then advisable to issue court process against such a firm in its firm name. The rules of the court facilitate the service of the process against such a firm in its firm name.

See: *Gatete & Another v Kyobe*, SCCA No.7 of 2005.

With leave of the court, the judgment is generally enforceable against any other partner within the jurisdiction but a foreign partner may have to be sued individually.

It is always good practice in drafting pleadings to state in the plaint more than the firm name and to give the names of the partners followed with words "trading as" and

then followed by the firm name.



JOINDER AND SUBSTITUTION OF PARTIES

Subject to the right of the court to order a separate trial for other procedures, the rules of the court provide the following grounds for voluntary or mandatory joinder of two or more parties in a proceeding.

- 1) Relief in respect of the same or series of transactions. Where all rights in a proceeding whether joint, several or in alternative are in respect of the same or a series of transactions.
- 2) Common questions of fact or law: where a common question of fact or law would or may arise in a proceeding if such proceedings are brought by the parties.
- 3) Leave of the court obtained: where the leave of court is obtained, parties may be joined in an action.
- 4) Joint Claimants: where persons are joint claimants, they may be joined as company plaintiffs or company defendants in any action.
- 5) Joint and Several Liability: where persons are jointly and severally liable for the relief sought, they need not be joined as company defendants but the court may stay proceedings until all the parties are joined.
- 6) Presence of a person promotes administration of justice: where the presence of a person as a party to a proceeding may promote the convenient administration of justice, then such a party may be joined to the proceedings.
- 7) Person's presence is necessary: where a person's presence is necessary as a party, to enable the court to effectively adjudicate upon the issues or where such a person is required by statute, then such a person may be joined on a party.
- 8) Doubt against when relief is sought: under Order 1 Rule 7, where there is doubt as to the persons from whom the plaintiff is entitled to obtain redress, he may join two or more defendants however under Order 1 rule 2, court has power to order separate trials if joinder of plaintiffs may embarrass or delay the trial.

JOINDER

In applying the rules, one must keep in mind that a person may be joined as a party in the proceedings:

1. By a defendant after proceeding with leave of the court.
2. By a plaintiff after proceedings with leave of the court.
3. By the court on an application of any party or by an intervener or the court may on its own motion add a party.

In joining parties the fundamental purpose is to enable court to deal with matters

brought before it and avoid multiplicity of pleadings.

A party joined to an action must have an interest in litigation. An original plaintiff with no cause of action cannot join a person who may have a cause of action.



JOINDER OF A DEFENDANT

The courts have laid down the following general principles with regard to joinder of persons as a defendant.

1. ***Interest for the defendant in relief.*** Any person against whom a plaintiff claims some relief may be a defendant, but it is not necessary for each defendant to be interested in all the relief sought, or in every cause of action.

The court may make such order as it appears to be just, to prevent any defendant from being embarrassed or put to expense by being required to attend any proceedings in which he or she may have no interest.

Under certain circumstances, the person may be made a defendant for the purpose of discovery.

2. ***A dissolved company as a defendant.*** A company which has ceased to have any existence in the country of its incorporation, cannot be sued as a defendant but where a company is in liquidation or receivership, it can be sued.

3. ***A right to a person to be plaintiff and defendant.*** The same person cannot be plaintiff and defendant in the same action but the defendant may be sued in two capacities such as personally and as a representative. There is nothing wrong with a person suing in a dual capacity.

Order 1 rule 10 provides that:

“(1) Where a suit has been instituted in the name of the wrong person as plaintiff, or where it is doubtful whether it has been instituted in the name of the right plaintiff, the court may at any stage of the suit, if satisfied that the suit has been instituted through a bona fide mistake, and that it is necessary for the determination of the real matter in dispute to do so, order any other person to be substituted or added as plaintiff upon such terms as the court thinks fit.

(2) The court may at any stage of the proceedings either upon or without the application of either party, and on such terms as may appear to the court to be just, order that the name of any party improperly joined, whether as plaintiff or defendant, be struck out, and that the name of any person who ought to have been joined, whether as plaintiff or defendant, or whose presence before the court may be necessary in order to enable the court effectually and completely to adjudicate upon and settle all questions involved in the suit, be added.

(3) No person shall be added as a plaintiff suing without a next friend or as the next friend of a plaintiff under any disability without his or her consent in writing to being added.

(4) Where a defendant is added or substituted, the plaint shall, unless the court otherwise directs, be amended in such manner as may be necessary, and amended copies of the summons and of the plaint shall be served on the new defendant, and, if the court thinks fit, on the original defendants.

(5) For the purpose of limitation, the proceedings against any person added or substituted as defendant shall be deemed to have begun only on the service of the summons on him or her.



In *Pathak v Mrekwu* (1964) EA 24, an action was filed in the name of the respondent 45 days after her death. Subsequently, an application to amend the plaint by substituting the name of another person as plaintiff was made under Order 1 rule 10 of the Indian Civil Procedure Code, 1908 and the magistrate who was not informed that the plaintiff was dead when the action was filed, made the order sought. The defence pleaded, inter alia, that the suit was a nullity, having been filed in the name of a deceased person. The magistrate however gave judgment for the plaintiff for the sum claimed. On appeal, it was held that a suit instituted in the name of a dead person is a nullity. The power conferred by Order 10 rule 1 to substitute a plaintiff where a suit has been filed in the name of a wrong plaintiff can only be exercised where the “wrong person” is living at the date of filing the suit and has no application where the “wrong person” is dead at such date.

In *Matharu v Italian Construction Company & Another* (1964) EA 1, the plaintiff was concerned in a traffic accident which also involved a vehicle then belonging to a firm known as Italian Construction Company Limited of which the partners of the firm were the directors and shareholders. When the plaintiff's advocate prepared and filed a plaint for his client, he showed the defendant company instead of the firm as a defendant, although the company was not in existence at the time of the accident. Subsequently, an application was made for leave to amend the plaint by substituting the firm for the defendant company in support of which it was submitted that that on the wording of the plaint, it was clear that it was the firm which it was really intended to sue.

It was held that upon a fair reading of the plaint, it was the plaintiff's intention to sue the persons who were the partners in the firm at the material date. Further, that since the partners, as directors of the limited company, had notice of the suit within the period of limitation, it was just and proper to grant the application. Court followed the case of *Saraspur Manufacturing Co. Ltd v BB&C Railway Co.* Where Macleod, CJ, said:

“It seems to me in the interests of justice that if it can be said that there has been a misdescription of a party in the title of a plaint, the necessary amendment ought to be allowed, if otherwise the rights of the parties would be prejudiced”.

The Court also referred to *Radha Lal v E I Railway Co. Ltd*, a case where the agent of the railway company had been sued instead of the company and Mullick, Ag. CJ, said:

“If the plaintiff deliberately chooses to sue not the company but the agent he cannot by any decree which he obtains in the suit bind the company. If, however, upon a fair reading of the plaint it is made out that the description of the defendant is a mere error and that the company is the real defendant, then the suit may proceed against

the company.”

The judge however noted that not all these cases were on all fours with the present case.

Joinder of Interveners

An intervener is one who on his own application and with leave of court is added to an action pending between others. When added, the intervener may have the status of a party to the action as a friend of the court. An intervener is normally referred to as *amicus curie* or friend of



court and is a person who calls the attention of court to some decision or point of law, but who does not become a party to the action.

Amicus Curiae is sometimes referred to as a bystander and where a judge is doubtful or mistaken in a matter of law, may inform the court. In the case of *Re Nakivubo Chemists (U) Ltd. (1977)*

H.C.B 311, court noted that, in the ordinary use the term amicus curiae implies a friendly intervention of counsel to remind the court of some matter of law which has escaped its notice in regard of which it is in danger of going wrong.

The common law principle is that the parties to an action have the rights to litigate free of interference by a stranger. Most recent cases have held that as an intervener or amicus curiae should be restricted to those cases in which the court is clearly in need of assistance.

At common law, a court has inherent power to invite an amicus curiae when it considers it desirable. However, the person so called, ought not to be interested in the matter at hand, except the Attorney General.

Third party proceedings

Under order 1 rule 14 CPR, third party proceedings is an action the defendant for contribution or indemnity against the 3rd person or a co-defendant as a third party (see rule 21).

Objects of 3rd party procedure

1. To prevent multiplicity of actions and to enable to court settle disputes between all parties in one proceeding and save expenses.
2. To prevent the same issue from being heard twice with a possibility of different results.
3. To have the issue between defendant and 3rd party resolved in the original action between the plaintiff and defendant.
4. To have the issue between defendant and 3rd party decided as soon as possible after the decision in the original action between the plaintiff and defendant.

In lieu of commencing 3rd party proceedings, the defendant may sue a 3rd person, in a separate action to enforce his rights.

Nature of third party proceedings

This order applies only to cases where the defendant claims to be entitled to contribution or indemnity against a third party.

A third party proceeding is in effect an independent action with a 3rd party becoming a defendant, with a right to counter claim or having the right to conduct a discovery of

opposing parties. Where the main action is settled, a 3rd party proceeding may still continue. A 3rd party may be dismissed for want of prosecution, even though the main action is still proceeding.

Under the rules of court, a 3rd party is not strictly a defendant against the plaintiff in the original suit, but the rules generally provide that a 3rd party may dispute the liability of the defendant on the original action to the plaintiff.



A 3rd party may also under the rules take third party proceedings against any other person including the plaintiff in the original action (See rule 20).

When the 3rd party claims contribution or indemnity, such third party may counter claim against the defendant in the original action, at whose instance he was made a 3rd party, but not against the plaintiff in the original action. As a 3rd party is not a party to that action.

Scope of third party proceedings

A claim for contribution or indemnity may arise out of an express or implied contract or from the relationship of parties or where a right of indemnity exists, when the relationship between the parties is such that either in law or equity, there is an obligation upon one party to indemnify the other.

The right to indemnity need not be for the claim in a main action. It may be for any separate or severable part in the plaintiff's claim. The defendant may also claim against a 3rd party for any relief or remedy relating to or connected with the subject matter of the original action and is substantially the same as the relief or remedy claimed by the plaintiff in the original action. But it is not necessary that the whole question between plaintiff and the defendant or the 3rd party be identical.

LIMITATIONS ON THIRD PARTY PROCEEDINGS

1. Factors in the original suit of 3rd party proceedings must be related. The real question to determine is whether in the facts upon which the plaintiff relies on against the defendant in the main action, issues arise of the relations between the defendant and the 3rd party. There must be a connection of fact or subject matter between the claim upon which the plaintiff sues in the main action and the claim of the defendant against the 3rd party.
2. Third party claim should be for an independent claim, one can't attach a 3rd party claim for contribution or indemnity on to an independent or personal claim that has nothing to do with the plaintiff's claim in the original action. Such a 3rd party proceeding was not allowed where the defendant's claim against a 3rd party was for damages which might be different in amount, from the plaintiff claim against the defendant from the original action.
3. Similar claims: In a 3rd party proceeding, there needn't be a similarity in the form of action of the main action and the 3rd party.
The 3rd party proceeding merely because there's simple negligence in the issue in the main action and gross negligence in the 3rd party proceedings.

4. When amount of claim is not ascertained: A claim for contribution or indemnity may be made against a 3rd party even though a precise amt of the claim against the defendant has not been finally settled.



5. Damages in 3rd party claim: There needn' t be an equivalence in measure of damages in a 3rd party proceedings with the main action.
6. Cause of action against a 3rd party: not withstanding that there must be a common question between the plaintiff and defendant in the main action, the defendant and 3rd party in the 3rd party proceedings, there must also be an existing C-O Action between the defendant and 3rd party proceeding.
7. Establishing liability of parties: - Where it' s desirable, the defendant liability to the plaintiff should be established in the main action, in such a way to be binding upon 3rd party, even though are the matters in dispute between the 3rd party and the defendant can' t be determined in the action.



INTERPLEADER

Where a stakeholder with no personal interest in property his holding receives trial claims on such property, from two or more persons, he or she may seek relief by way of inter pleader. And this is by the trial claimants' arguing out their claims against each other before the court, where the inter-pleader proceeding may be instituted.

According to sec. 59 of Civil Procedure Act "where two or more persons claim adverse to one another, and the same date, sum of money or other property movable or immovable from another person who claims no interest there in, other than 4 changes or costs and who is ready to pay or deliver to the rightful claimant, such other person may institute a suit of inter-pleader against all claimants."

Under **0.31 R. 2** it's provided that in a very suit or application by way of inter-pleader, the applicant shall satisfy the court by way of affidavit or otherwise.

- a) That the applicant claims no interest in the subject matter as dispute other than for charges or costs.
- b) That there's no collision between the applicant and any of the claimants.
- c) That the applicant is willing to pay to transfer the subject matter into court or dispose of the as the court may direct."

NATURE OF INTER PLEADER RELIEF (ORDER 34)

According to the case of *Famous Ajoling Agency Ltd. V M. Ramj (1994) 5 K.L.R. 58*, Court noted that the basis of the right to inter pleader relief is in the existence of a conflict between two or more persons claiming the same property or debt.

The object of an inter pleader proceeding is to save an applicant from the embarrassment of being sued by more than one party in respect of the same subject matter and also to ensure that the claimant can enforce the claims with an order of court.

Where an action has been commenced by one or more claimants against the order, the application is made by interlocutory application as provided under **Order 34 rule 1(a)**

The affidavit in support of an application for inter pleader should state the following. That the applicant claims no beneficial interest in property in dispute other than charges or costs.

2. That the applicant doesn't collide with any claimant to the property.
3. That the applicant is willing to deliver the property to court and to dispose off it as the court directs.

The charges will include the applicants out of pocket expenses for his care and travel with custody to the plaintiff. Following the determination of whether the applicant for inter pleader relief should be granted, the court must then determine the issue

between the claimants. The granting of inter pleader relief is discretionary and cannot be claimed as of right, the court will only exercise its power when it's satisfied that is the circumstances of the case, it's just and proper that relief should be granted.

Procedure for Application of inter pleader by originating summons as provided under **O-31 R1** and **O.34R7**



The summons must be served on the plaintiff if proceeding have already been issued and both or all claimants to the property, if the proceeding haven' t yet been issued, the court may either;

- a) Order that the issue be stated and tried with a direction as to who should be the plaintiff and defendant.
- b) If all the parties consent, all the facts are not in dispute, summarily det-any question of law and dissolve the dispute.
- c) If a claimant fails to attend, order that he or she should be banned from prosecuting his or her claim against the stake holder.



PLEADINGS

It is in all cases desirable and necessary that the matter to be submitted in court for decision should in all cases be ascertained. The defendant is entitled to know all that the plaintiff alleges against him or her. The plaintiff is also entitled to know what the defendant's defence is.

The defendant may dispute every statement made by the plaintiff or may be prepared to prove other facts that will give the case a different turn. He or she may rely on a point of law or on the claim. In all cases, before the trial, parties should know exactly what they are fighting about. Otherwise, they unnecessarily labour and incur unnecessary expenses to procure evidence to prove at the trial facts which the opposite party concedes.

Section 2 of the Civil Procedure Act defines pleadings to include "any petition or summons, and also includes the statements in writing of the claim or demand of any plaintiff, and of the defence of any defendant to them, and the reply of the plaintiff to any defence or counterclaim of a defendant".

In Odger's Principles of Pleadings and Practice, 20th Edition, page 11, pleadings are defined as statements in writing, served by each party alternately on his opponent, stating what his contention will be at the trial, and giving all such details as his opponent needs to know in order to prepare his case in answer".

The usual pleadings in an action are:

- Statement of claim, in which the plaintiff sets out his or her cause of action with all necessary particulars as to his or her injuries and losses.
- A defence, in which the defendant deals with every material fact alleged by the plaintiff in his statement of claim and also states new facts on which he or she intends to rely. A defendant may also set up a cross claim known as a counter claim.
- A reply in which the plaintiff deals with fresh facts raised by the defendant in his or her defence. A reply is unusual except where a defendant sets up a counter claim.

The plaintiff naturally begins with a plaint presented to court. On the plaint, the plaintiff lays his or her claim.

The defendant may put in his or her defence which besides answering the plaintiff's claim may set up a counter claim or a set off. The plaintiff may make a reply and the defendant may rejoin. Each of the alternate pleadings must in its own terms either admit or deny the facts alleged in the last preceding pleadings. It may also allege additional facts where necessary.

The points admitted by either side are extracted and distinguished from those in controversy. Other facts not disputed may prove to be immaterial. Thus, litigation is limited to the real matters in dispute.

Pleadings should be conducted so as to evolve clearly defined issues, definite propositions of law and fact asserted by one party and denied by the other but which both agree to be the points on which they wish to have the court decide in the suit.



There are advantages achieved after the exchange of pleadings namely:

- The parties themselves get to know what exactly is in dispute and actually may find that they are fighting over nothing.
- The parties get to know what exactly will be brought at the trial and this may save expenses in procuring evidence.
- The mode of the trial may be determined from the pleadings which may raise a simple point of law.
- Pleadings help in final determination of the issues. The successors to the parties do not have to fight over the same issue (see s.7 CPA).

The function of pleadings is to ascertain with precision the matters on which the parties differ and those on which they agree and thus, to arrive at clearly defined issues which both parties desire a judicial decision. To arrive at this, pleadings must be exchanged between the parties in accordance with the law and practice.

The law compels each party to state clearly and intelligibly the material facts on which he or she relies omitting everything immaterial and to insist on his or her opponent admitting or expressly denying every material matter alleged against him or her. Each party must give his or her opponent a sufficient outline of the case.

After the first pleading, namely the plaint, each party must do more than state his or her case. He or she must deal with what is presented by the opponent. A party who wants to contest the opponent's case must deal with the other party's case in three ways:

- a) He or she can deny the whole or some essential part of averments of facts contained in the pleadings. This is what is called traversing an opponent's allegations and the party will in essence be compelling the other to prove his or her allegation.
- b) He or she may confess and avoid (confession and avoidance). In his or her defence, he or she may allege facts which go to destroy the effect of the facts alleged in the plaint. He or she may plead other facts but argue that it is the plaintiff in default.
- c) A demurrer – This basically means pleading a point of law. The defendant may plead res judicata, limitation, e.t.c. particularly, the allegation may be traversed as or objected to as bad in law, or some collateral matter may be raised to destroy the effect of the plaintiff's pleading.

The cardinal rule of pleadings is contained in order 6 rule 1(1) which states that "Every pleading shall contain a brief statement of the material facts on which the party pleading relies for a claim or defence, as the case may be."

Under Order 6 rule 1(2) it is provided that:

“the pleadings shall, when necessary, be divided into paragraphs, numbered consecutively; and dates, sums and numbers shall be expressed in figures.”

From this rule, it follows that:



(a) Pleadings should contain facts not law and a party has to prove those facts that will help him or her to hold his or her case and he or she must do so precisely.

In **Shaw v Shaw [1954] 2 QB 429, 441**, Lord Denning said that:

“It is said that an implied warranty is not alleged in the pleadings, but all the material facts are alleged, and in these days, so long as those facts are alleged, that is sufficient for the court to proceed to judgment without putting any particular legal label upon the cause of action”.

See also: *Singlehurst v Tapscott Steamship Co.* (1899) WN 133

Whenever a party is pleading, he must only send the material facts. It is not sufficient to plead generally.

(b) A party must plead only the material facts. In **Bruce v Oldham's Press Ltd [1936] 1 KB 712**, Scott, LJ, said that:

“The word ‘material’ means necessary for the purpose of formulating a complete cause of action, and if any one ‘material’ fact is omitted, the statement of claim is bad”.

In **Darbyshire v Leigh [1896] 1 QB 554, 65 LJ QB 360**, it was stated that:

“But in an action for libel or slander, the precise words complained of are material, and they must be set out verbatim in the statement of claim. If the words taken by themselves are not clearly actionable, the plaintiff must also insert in his statement of claim an averment (with particulars in support) of an actionable meaning which he will contend the words conveyed to those to whom they were established. Such an averment is called an innuendo”.

Whether or not a fact is material will depend on the circumstances of a case and where there is doubt, a fact should be included in the pleadings as the more facts included the better.

Where notice is an element of a cause of action, one must plead that notice. For instance under the Bills of Exchange Act, it is a requirement to give notice of dishonor to the person who issued the bill of exchange.

The party must state his or her case. The plaintiff is not entitled to any relief not pleaded in the pleadings and not proved at the trial.

Under Order 6 rule 2, every pleading must be accompanied by a summary of evidence, list of witnesses, list of documents and list of authorities. This is hinged on the fundamental premise that there should be no element of surprise at the trial. Additional lists can be presented to the court with leave.

Particulars in Pleadings

The necessity for particulars springs from the need to have precise and concise pleadings. They serve to supplement otherwise vague and generalized pleadings and are necessary for a fair trial.



Particulars also help to prevent surprise at the trial by informing the other party of the nature of the case he or she is likely to meet and defend thus securing ground for an amicable settlement of issues as opposed to warfare.

Order 6 rule 3 of the CPR provides that:

“In all cases in which the party pleading relies on any misrepresentation, fraud, breach of trust, wilful default or undue influence, and in all other cases in which particulars may be necessary, the particulars with dates shall be stated in the pleadings.”

In **Bisuti v Busoga District Administration**, the court held that the function of particulars was to carry into operation the overriding principle that litigation between the parties and particularly the trial should be conducted fairly, openly and without surprise. They serve to inform the other side of the nature of the case they have to meet as distinguished from the mode in which the case is to be proved, to enable the other side to know the what evidence they ought to be prepared with and to prepare for trial and to prevent the other side from being taken by surprise.

In **Lubega v Barclays Bank**, the Supreme Court held that particulars of fraud must be pleaded as a legal requirement but that failure to do so is a mere irregularity curable by adducing evidence.

In **Kampala Bottlers v Damanico**, court found that particulars are mandatory and failure to state them was fatal.

In **David Acar v Acar Aliro (1987) HCB 60**, the court found that a party who has not pleaded an issue or led evidence on it in a lower court cannot raise it on appeal.

Further and Better Particulars

Pleadings may be filed and exchanged between the parties, a plaint may be served on the defendant who may serve a written statement of defence in turn but the other party may feel that the opposite party's pleadings lack the particulars required. In situations where a party finds that the adversary's pleadings are not clear, procedural law provides for methods of seeking clarity.

This can be through seeking further and better particulars, discovery of documents or the administration of interrogatories. The opposite party's pleadings may be attacked in order to enable the party to acquire the necessary particulars required in the case.

Since a party cannot amend the other party's pleadings, he or she can ask for an alteration or clarification in the other party's pleadings.

Order 6 rule 4 states that:

“A further and better statement of the nature of the claim or defence, or further and better particulars of any matter stated in any pleading, may in all cases be ordered upon such terms as to costs and otherwise as may be just.”



Initially, the unsatisfied party writes to the other requesting him to furnish him with material facts. If after correspondence the particulars are not forthcoming, the party requiring particulars may apply to court for an order requesting the opposite party to furnish further and better particulars and the court may make such order.

The object of further and better particulars is to enable the other party to know what to expect at the trial. The opponent should not be surprised.

See: Joshi v Uganda Sugar Factory Ltd [1965]

EA 570 Weiberger v Inglis (1916-17) All

ER 844

Departure from Pleadings

Under order 6 rule 7, it is provided that:

“No pleading shall, not being a petition or application, except by way of amendment, raise any new ground of claim or contain any allegation of fact inconsistent with the previous pleadings of the party pleading that pleading.”

This is intended to prevent surprise at the trial. See: Darcy v Jones (1959) EA 121

Amendment of Pleadings

A party may find that his or her pleadings are not clear and may in such a case move court by way of amendment. Sometimes, a need for amendment may arise from the other party adducing a new issue.

The law provides for amendment with leave and amendment without leave of court.

Amendment with Leave

Order 6 rule 19 CPR provides that:

“The court may, at any stage of the proceedings, allow either party to alter or amend his or her pleadings in such manner and on such terms as may be just, and all such amendments shall be made as may be necessary for the purpose of determining the real questions in controversy between the parties.”

Amendment without leave

The law allows both the plaintiff and the defendant to amend his or her pleadings without leave of court.

Order 6 rule 20 provides that:

“A plaintiff may, without leave, amend his or her plaint once at any time within twenty-one days from the date of issue of the summons to the defendant or, where a written statement of defence is filed, then within fourteen days from the filing of the written statement of defence or the last of such written statements”.



Order 6 rule 21 provides that:

“A defendant who has set up any counterclaim or setoff may without leave amend the counterclaim or setoff at any time within twenty-eight days of the filing of the counterclaim or setoff, or, where the plaintiff files a written statement in reply to the counterclaim or setoff, then within fourteen days from the filing of the written statement in reply.”

Apart from the cases specified as instances in which the parties can amend without leave, in all other cases, the parties must seek the permission of the court. After the lapse of the time within which pleadings can be amended, a party’s pleadings will be deemed to be closed and documents filed thereafter will be of no legal effect or consequence.



CAUSE OF ACTION

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A cause of action can be defined as the fact or combination of facts which give rise to a right of action. The cause of action is the heart of the plaint, which is the [Pleading](#) that initiates a lawsuit. Without an adequately stated cause of action the plaintiff's case can be dismissed at the outset. It is not sufficient merely to state that certain events occurred that entitle the plaintiff to relief. All the elements of each cause of action must be detailed in the plaint. The claims must be supported by the facts, the law, and a conclusion that flows from the application of the law to those facts.

The cause of action is often stated in the form of a syllogism, a form of deductive reasoning that begins with a major premise (the applicable [Rule of Law](#)), proceeds to a minor premise (the facts that gave rise to the claim), and ends with a conclusion. In a cause of action for [Battery](#), the rule of law is that any intentional, unpermitted act that causes a harmful or offensive touching of another is a battery. This is the major premise and is stated first. Supporting facts, constituting the minor premise, appear after the rule of law. For example, a statement of facts for a case of battery might be "The plaintiff, while walking through ABC Store on the afternoon of March 11, 2009, was tackled by the defendant, a security guard for the store, who knocked the plaintiff to the floor and held her there by kneeling on her back and holding her arms behind her, while screaming in her ear to open her shopping bag. These actions caused the plaintiff to suffer injuries to her head, chest, shoulders, neck, and back." The cause of action concludes with a statement that the defendant is responsible for the plaintiff's injuries and that the plaintiff is entitled to compensation from the defendant.

A cause of action can arise from an act, a failure to perform a legal obligation, a breach of duty, or a violation or invasion of a right. The importance of the act, failure, breach, or violation lies in its legal effect or characterization and in how the facts and circumstances, considered as a whole, relate to applicable law. A set of facts may have no legal effect in one situation, whereas the same or similar facts may have significant legal implications in another situation. For example, tackling a shoplifting suspect who is brandishing a gun is a legitimate action by a security guard and probably would not support a claim for relief if the suspect were injured in the fracas. On the other hand, tackling a shopper who merely acts in a suspicious manner while carrying a shopping bag is a questionable exercise of a guard's duty and may well give rise to [Justiciable](#) causes of action.

A cause of action has been defined in various cases from being "every fact which is material to be proved to entitle the plaintiff to succeed" in *Cooke v Gill* (1873) LR 8 CP 107 to "every fact which it would be necessary to support his right to the judgment of the court" in the case of *Read v Brown* (1888) 22 QBD 128.

According to the leading East African case of **Auto Garage Vs Motokov (1971) E.A.**

314. there are 3 essentials to support or sustain a cause of action:

1. That the plaintiff enjoyed the right.
2. That the right has been violated.
3. That the defendant is liable

If any of these essentials is missing, the plaint or statement of claim is a nullity.



A Cause of action also means every fact which defendant will have a right to traverse.

In the case of *Uganda Aluminium Ltd V Restuta Twinomugisha C.A. No. 22/2000* and also in *Tororo cement Co. Ltd V. Frokina International Ltd, C.A. No. 21/2001 unreported*, it was noted by the Court of Appeal that a cause of action means every fact which is material to be proved to enable the plaintiff succeed or every fact which if denied the plaintiff must prove in order to obtain judgment.

To sue, or not to sue. That is a question that ponders the mind of the practising lawyer day by day. But, the truth really is, that few things delight lawyers more than having the opportunity to sue. Litigating, besides being part of the lawyer's source of bread and butter, also gives the opportunity for the lawyer to hone his literary and oratory skills, and nothing gives a better high than a successful day in court.

But before one can even sue, one needs to bear in mind the procedures involved. And none is a procedure more important than having a valid cause of action.

In order to determine whether or not a plaint discloses a cause of action, the court must look only at the plaint and its annexures if any and nowhere else.

The above issue was reiterated in the case of *Kapeka Coffee Works Ltd & Anor Vs NPART Court of Appeal Civil Appeal No. 3/2000*.

In *Otucu & Another v Otwi & Others*, High Court Civil Appeal 027 of 2007 (at Gulu), Justice Remmy Kasule observed the following:

“The essence of grounds one (1) and three (3) of appeal is whether or not the learned trial magistrate was justified to hold that the plaint filed in court by the plaintiffs disclosed a cause of action against the Defendants, and whether the plaintiff's claim was time barred under the Limitation Act. These grounds will be considered by court together.

The law as to the existence of a cause of action in a plaint is that: If a plaint shows in its averments that the plaintiff enjoyed a right and that that right has been violated and that the defendant is liable for that violation, then the plaint discloses a cause of action.

In determining whether a plaint discloses a cause of action, court must only consider and look at the averments contained in the plaint. Court is not to consider extraneous matters outside the plaint.

See: AUTO GARAGE VS MOTOKOV (NO. 3) 1971 EA 514 at page 519, JOSEPH

MPAMYA VS AG (1996) 11 KALR 121 at p. 124 And HIGH COURT OF UGANDA HOLDEN AT GULU CIVIL APPEAL NO. 8 OF 2007, MARY OCENG & 2 OTHERS VS SANTO ADOKO, UNREPORTED.



Since now in Uganda the law i.e. Order 6 Rule 2, of the Civil Procedure Rules, is that every pleading must be accompanied by a summary of evidence, in the humble view of this Court, it would not be wrong of court, to consider what is stated in the summary of evidence when considering whether a plaint discloses or does not disclose a cause of action. Since this is a new development in the law of Civil Procedure in Uganda, in this particular case under consideration this court shall, in deciding the issue, confine itself to what is stated in the plaint only.

It was incumbent of the learned trial magistrate to look at and consider only the plaint in determining whether or not the plaint disclosed a cause of action.

With respect to the learned trial Magistrate, she based her decision in reaching the decision she made by considering and taking into account matters that had to be proved by evidence at the actual hearing of the case, which stage had not yet been reached by the time the preliminary objection was raised. Thus on page 2 para 8 of her Ruling the learned magistrate holds:

“It is thus improper and unbecoming of a person who comes empty handed to dislodge all these persons and even if this was not the case I think the plaintiff’s sat on their rights for too long”.

The learned trial magistrate had had no evidence at all from the parties to reach the above conclusion. The learned Magistrate then proceeded to consider the issue of consent from the plaintiffs before the defendants can transact business on the suit land and then concluded:-

“I am convinced that the land in issue is customary land belonging to the plaintiff and 1st and 2nd defendants since they all come from a common decency.”

And then she concluded

“The claim that the defendants needed to have consulted the plaintiff before selling off or hiring out the said land to the rest of the defendants do not then stand”,

and

“It should be noted that the use or ownership of customary land is governed by the practice, customs or traditions of the particular clan or by local customary regulations. The plaintiff in this case did not show or make mention of such a breach by 1st and 2nd defendants”.

Basing on the above conclusions the learned trial magistrate concluded that the plaintiffs did not show a cause of action because:-

“ First all their own land or share is not disturbed. Each and every party is on his or her land. There is therefore no violation of any right of the plaintiffs. Even if this was so time has barred them from instituting the suit. Their consent is also not

necessary here”

and

“ Besides, any person cultivating any land adjoining a residential holding owned by an intestate prior to his/her death have a right to do so for as long as the person is resident there. I believe this is applicable to defendants.”

The learned magistrate finally held that:

“ I am convinced the plaintiff did not satisfy the requirement of Order 0.7 r. 11 (a) and has no locus standi”



She then dismissed the suit as there was no cause of action. The order to dismiss the suit was itself wrong. The court should have rejected the plaint under Order 7 Rule 11 (a) of the Civil Procedure Rules. More fundamental however is the fact that, as born out by the above extracts from the Ruling of the learned trial magistrate, she reached her decision by considering matters that needed to be proved and had not been proved before her by any evidence from any of the parties. They were matters she had to resolve upon if a full trial of the case had taken place.

The learned trial magistrate ought to have restricted herself to looking at the plaint only. Admittedly, the plaint was badly and carelessly drawn. It is a matter of regret to the legal profession that the same is a product of a firm of lawyers. The legal profession, more than any other profession, enjoins its members to exhibit the best proficiency of expertise when handling and pursuing instructions of clients. This is because, more often than not, what is being handled for the clients involves determination of their fundamental rights and obligations.

In this particular case, the firm of lawyers who drew up the plaint and filed the same for the plaintiffs, cannot be said to have measured up to that high level of professional efficiency and expertise.”

When a cause of action is founded in a determinant tort e.g. negligence, there are cornerstones on which the will be based. Actionable negligence consists in the neglect of the use of ordinary care and skill towards a person to whom the defendant owes a duty of observing ordinary care and skill.

Under **Order 7 rule 11** (a) of the CPR provides that,

“A Plaint shall be rejected where it does not disclose a cause of action.”

A plaint without a cause of action is nothing as there is no basis for locus for such party to be before court in the first place.

JOINDER OF CAUSES OF ACTION

The facts or circumstances that entitle a person to seek judicial relief may create more than one cause of action. For example, in the preceding example, the plaintiff might assert claims for assault, battery, intentional infliction of emotional distress, and violation of [Civil Rights](#). She might also bring claims for negligent hiring (if the guard had a history of violent behaviour which the store failed to discover) or negligent supervision. (When damages are caused by an employee it is common to sue both the employee and the employer.) All these causes of action arise from the same set of facts and circumstances but are supported by different rules of law and constitute separate claims for relief.

Under Order 2 Rule 4 CPR, it is provided that:

“(1) Except as otherwise provided, a plaintiff may unite in the same suit several causes of action against the same defendant or the same defendants jointly; and any plaintiffs having causes of



action in which they are jointly interested against the same defendant or the same defendants jointly may unite those causes of action in the same suit.

(2) Where causes of action are united, the jurisdiction of the court as regards the suit shall depend on the amount or value of the aggregate subject matters at the date of instituting the suit.”

The joinder of causes of action not only has an effect of reducing the number of actions but also on who should be parties to an action.

Under **Order 2 rule 7**, it is provided that:

“Where it appears to the court that any causes of action joined in one suit cannot be conveniently tried or disposed of together, the court may order separate trials or may make such order as may be expedient.”

A plaintiff may under order 2 rule 4 CPR join in an action, more than one cause of action and when the joinder of any cause of action is contested by the defendant, the plaintiff must justify the joinder or else the objection of misjoinder will be upheld by court. Order 2 rule 8 (1) provides that:

“Any defendant alleging that the plaintiff has united in the same suit several causes of action which cannot be conveniently disposed of together may at any time apply to the court for an order confining the suit to such of the causes of action as may be conveniently disposed of together.”

For example, in the case of *Christopher Kayabeke V Annes Agaba*, the plaintiff had two **causes of action** properly brought before the court. One of them was the partial action by which he sought court’s protection of his pecuniary interest in the company and a derivative action by which he sought court’s protection for the good of the company generally against waste by the directors. The court rightly entertained the matters and granted appropriate damages in respect of the two cause of action.

Joinder of causes of action is directly related with consolidation of suits under Order 10 of the Civil Procedure Rules.

In the case of *Metropole Plannacy U. Ltd V. Katumba (1975) H.C.B. 61*, the High Court held that where there is a misjoinder of causes of action, the plaint could be struck out under or a separate trial maybe ordered under O.2 R5 (now 7).

A joinder of causes of action can result in ouster of courts pecuniary jurisdiction. Where such cause of action are united, the jurisdiction of the court shall depend on the amount or value of the aggregate subject matter as at the date of instituting the suit (See Order 2 rule 4(2) CPR).

In the case of *Kiramukutesa Consumer' s V. Ssebugwawo (1986) H.C.B. 61*, it was held that where after consolidation the value exceeds the jurisdiction of the court, such court should not proceed with a trial after consolidation.



PRINCIPLES APPLICABLE TO JOINDER OF CAUSES OF ACTION

The courts have laid down the following principles with respect to joinder of causes of action.

- 1) **Trend to encourage joinder:** The trend of modern jurisprudence is to extend the application of rules of court, to have all the issues between the parties dealt with in one action and to diminish the cost of litigation.
- 2) **Different Capacities of parties:** Different causes of action may arise out of the fact that a party may sue or be sued in different capacities. If one person sues in a personal capacity and as an executor, he is in fact suing as a separate and distinct person in a cause of action.
- 3) **Plaintiffs with different causes of action:** Different plaintiffs may have different causes of action against the same defendant. This is generally permitted under the rules where the cause of action arises in respect of the same transaction or series of transactions where the court authorizes the joinder. However such joinder is discretionary.
- 4) **Plaintiff determines Joinder:** A plaintiff has the option of determining which cause of action against the defendant he will join, but when a cause of action against the defendant arose subsequent to the issue of summons, joinder of a claim is improper. Joinder of a defendant against whom the plaintiff makes no claim is not permitted unless a very clear and strong case was made that the joinder was necessary for the determination of the issues in the action.
- 5) **Trial of several causes of Action in an action.** Where there are several causes of action the court may order separate trials in respect of certain claims or order that the trial judge should determine which issues are to be tried by the judge. The discretion of the judge will prevail unless she or he acted on a mistake of law.
- 6) **Refusal of Joinder of Cause of Action:** Joinder of cause of Action should not be permitted if the actions cannot be disposed off conveniently in one action or their joinder will be considered too oppressive.

CONSOLIDATION OF ACTIONS AND TEST SUITS

When actions involving a common question of law or fact are pending before the court, it may order all the actions consolidated.



Consolidation of suits will be ordered especially where,

- a) a common question of law or fact arises in the actions.
- b) the right to relief arises in respect of the same transaction or series of transactions.
- c) It is otherwise desirable to approve the consolidation.

This is provided for under **Order 10 rule 1 of the Civil Procedure Rules** which provides that: "Where two or more suits are pending in the same court in which the same or similar questions of law or fact are involved, the court may, either upon the application of one of the parties or of its own motion, at its discretion, and upon such terms as may seem fit—

- (a) order a consolidation of those suits; and
- (b) direct that further proceedings in any of the suits be stayed until further order."

The court may also provide in the consolidation order that the proceedings be tried at the same time or one immediately after the another.

Consolidation of cases is "permitted as a matter of convenience and economy in administration, but does not merge the suits into a single cause, or change the rights of the parties, or make those who are parties in one suit parties in another.

A court has discretion to consolidate cases under Order 10 rule 1(a) if such consolidation will help it manage its caseload with "economy of time and effort for itself, for counsel, and for litigants."

- 1) The actions to be consolidated where upon the actions are consolidated into one action and continue as such which possibility of a common counsel or one set of pleadings, a single discovery, judgement and bill of costs. However, this order does not require that different C.O. Action arising out of the same transaction be included in one suit.
- 2) The actions are not consolidated but are board together with the trail of one immediately following other with separate pleadings, discovery and judgements as noted in the case of *Teopista Kyebitama V Damino Batumwa 1976 H.C.B. 276*. That it's well established, where two or more suit sare filled involving the same parties and arising from the same C.O. Action, they should either be consolidated from the purpose of determining liability of only are of them and the first one which may be before

court. In such circumstances any party in the following action who is not a party to the earlier action will be permitted to attend and take part in the earlier trial and cross examine the witnesses and the evidence in the earlier action may be used in another separate case and different decisions will be delivered.

- 3) One action will be heard while the removing action are stayed and the decision in the first case may govern the other' s or have a greater effect to their decisions.



GRANT OF ORDERS OF CONSOLIDATION

Granting an order for consolidation is within the court's discretion. The rules of court generally provide the same ground for permitting consolidation as applied to the joinder of parties namely:

- 1) Common questions of fact or law.
- 2) Rights to relief arising out of a similar transaction.
- 3) Whether consolidation is proper.
- 4) In cross-actions between the same parties arising out of the same matter.
- 5) Same causes of action.
- 6) Whether consolidation will serve expense.

REFUSAL OF CONSOLIDATION

- 1) Where the rights on the position of plaintiff would be prejudiced by consolidation of his action with error against the plaintiffs will.
 - 2) When it's impossible to save expense, to avoid multiplicity of pleadings and proceedings, consolidation is refused and especially where there are different advocates involved.
 - 3) Where a person is a plaintiff in one case and a defendant in another and the consolidation will result in the plaintiff becoming the defendant in the consolidation and may lose his advantages as a plaintiff instead of consolidating the action, court should set down the case of hearing one following the other in the order the sermons were issued.
 - 4) Where it's a different law to be applicable to the two C. O. Action consolidation will be refused.
 - 5) Where the plaintiff in one action has to meet different standard to proof from the plaintiff in the other action, then consolidation will not be allowed especially in cases involving fraud.
 - 6) Where in the cross action between the parties, the consolidation would necessitate fresh pleadings throughout and multiply the interlocutory steps, consolidation is refused.
 - 7) Where the plaintiff in each action are represented by different counsel and problems would arise in a consolidated action in the preparation of common pleadings and the preparation for the conduct of a common trial.
 - 8) Where relevant matters in one action arose subsequent to the commencement of another action and the actions proceeded to a considerable extent, then consolidation will be refused.
 - 9) Where the actions are set down for trial. Consolidation should be refused because of a multiplicity of pleadings that can't be avoided and the expenses being saved.
 - 10) Where there are different issues involved, then the court will not allow the
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consolidation since the different issues have to be resolved differently.

CONDUCT OF CONSOLIDATED ACTIONS

When actions are consolidated, the order for consolidation should contain all the necessary directions for its future conduct including the designation of the party who is to have conduct of the consolidated action.

Action may be conducted on the basis of any of the following: -



- 1) Which action has stated first.
- 2) Upon whom does the B of proof lie.
- 3) Which action is more comprehensive in scope.

As a general rule the conduct of consolidated action is given to the plaintiff who commenced the first action but it may also be given to the interested party or a party who is to foot the expenses of the consolidated action.

In the case of *Kivamukutesa consumers Vs Sebugwawo* (1986) H.C.B. 61, it was held that where after consolidation of the court, such court should not proceed with the trial after the consolidation.

TEST SUITS

Where two or more persons have sued or have been sued separately but would have been joined in one suit, upon the application of any of the parties, the court may if satisfied that the issues to be tried in each suit are precisely similar, make an order directing that the suit be tried as a test case and stay all proceedings and steps in the other suit until the selected suit shall have been determined or shall have failed to be a real trial of the issues as provided under 0.35R1.

By agreement of the parties, one action will be heard with the remaining actions being stayed pending the decision in the test action.

In order to have a test suit to action, all the issues and evidence in the actions should be substantially the same. Where the trial of the test action didn't involve the merits of the case or where there was not a fair trial of the issues the court may substitute another action as the test action, the judgment in the test action will not proceed an appeal in the other actions unless there is an argument that the test action decision is to be final.

LIMITATION OF ACTIONS

One of the most important tasks which an advocate needs to undertake when a client is giving instructions or the details on his/her plaint is to ascertain when the relevant limitation period will expire. This assists the advocate in determining when he may file the necessary court documents. Whenever an action is brought out of time, the defendant will have a defence of limitation and it can be raised at any stage.

NATURE OF LIMITATION

The limitation period is a time limit during which an action may be brought and thereafter, the potential plaintiff is barred and may no longer bring his or her action. The best reason for the limitation is that potential defendants will not have to live with the risk of legal action indefinitely if for one reason or another the potential plaintiff does not pursue his or her remedy.



Additionally, old actions are difficult to try when memories are crowded and evidence has been probably lost. Statutes of limitation are in their nature strict and inflexible enactments. Their overriding purpose is that litigation shall be automatically stifled after a fixed length of time irrespective of the merits of a particular case.

There is limitation of action at common Law and there are rules that are a creation of a statute. Where a cause of action is not covered by a statute, then the limitation period may be determined on the basis of the common law rules. Apart from the equitable doctrine of laches applicable to equitable remedies, no statutory provision will be inferred to create a limitation period where it is not specifically provided. The Limitation Acts in Uganda is the limitation Act cap 80 and the civil procedure and limitation (Miscellaneous provisions) Act cap 81. These laws impose a time limit upon an existing right of action.

BASIC PRINCIPLES OF LIMITATION

The determination of when time begins to run depends upon the date from which the cause of action arises and is dependent upon the nature of the cause of action. In case of a right which is actionable without damage being suffered, such as a contract, a cause of action will arise as soon as the breach occurs.

The notion of actionable damage was recently reiterated by the House of Lord in the case of **Johnston (Original Appellant and Cross-respondent) v. NEI International Combustion Limited (Original Respondents and Cross-appellants) [2007] UKHL 39**. Lord Hoffman, delivering the leading judgment noted that:

“Some causes of action arise without proof of damage. Trespass and breach of contract are examples. Proof of the trespass or breach of contract is enough to found a cause of action. If no actual damage is proved, the claimant is entitled to nominal damages. But a claim in tort based on negligence is incomplete without proof of damage. Damage in this sense is an abstract concept of being worse off, physically or economically, so that compensation is an appropriate remedy. It does not mean simply a physical change, which is consistent with making one better, as in the case of a successful operation, or with being neutral, having no perceptible effect upon one’s health or capability.”

The identification and classification of the cause of action can be of vital importance with regard to both these major principles of limitation legislation. A cause of action is the basic concept in determining the limitation period. For a cause of action to arise for limitation purposes, there must be competent parties i.e. there must be a plaintiff who can succeed and a defendant against whom he can succeed. Time cannot run

where the potential defendant is dissolved or where there is no defendant against whom success could be achieved.

At common law if a potential plaintiff is an enemy alien, no cause action can arise since he has no standing to bring his or her action and as soon as he ceases to be an enemy alien, then he may bring an action within the time required.



CONSECUTIVE CAUSES OF ACTION

Where there are any activities giving rise to a single cause of action occasioning to defendant sets of damages one of which completes the cause of action and the other arises after the completion of the limitation period which begins to run on the first set of damage, proceedings can be brought in respect of the former within the limitation period but cannot be maintained in respect of the later. The general rule is that only one cause of action can be brought in respect of concurrent causes of action. This situation must however be closely distinguished from the situation which can arise where the defendant's activities give rise to consecutive causes of action. This will normally arise where a defendant is under a continuing duty which he breaches on separate occasions possibly years apart.

EFFECT OF AN ACTION WHICH IS STATUTE BARRED.

The underlying principle of the law of limitation is that once a cause of action has become statute barred, subsequent developments cannot revive it. When a plea of limitation is available to the defendant, it constitutes a substantive right which should not be taken away from him or her. This basic attitude underpins the policy which gives rise to the principle that 'once statute barred always statute barred'.

The above position was reiterated in the case of *In Arnold v Central Electricity Generating Board* [1988] AC 228. The plaintiff sued as widow and administratrix of the estate of her deceased husband. He had worked from April 1938 to April 1943 for a public authority to which the CEGB was the successor. During that period, it was claimed, he had been exposed to asbestos dust as a result of his employer's negligence and breach of duty. In 1981 he was found to be suffering from mesothelioma, said to be a long-delayed result of his exposure, and he died of this disease in May 1982. Proceedings were issued in April 1984. It was common ground that any cause of action the deceased may have had was barred by section 21 of the 1939 Act one year after his employment had ceased, namely in April 1944. The issue was whether the 1963 Act or the 1975 Act had had the effect of enabling the widow to sue despite this time bar, whether (in other words) one or other or both of those Acts had had the effect of reviving the deceased's cause of action. This was tried as a preliminary issue.

Mr Michael Ogden QC, sitting as a deputy judge of the Queen's Bench Division, resolved the issue in favour of the widow. He referred to *Knipe*, by which he was of course bound, and bore in mind the Privy Council judgment in *Yew Bon Tew v Kenderaan Bas Mara* [1983] 1 AC 553, 563, where Lord Brightman (on behalf of the Board) said:

"an accrued right to plead a time bar, which is acquired after the lapse of the statutory period, is in every sense a right, even though it arises under an Act which is

procedural. It is a right which is not to be taken away by conferring on the statute a retrospective operation, unless such a construction is unavoidable."

Earlier in his judgment, at p 558, Lord Brightman had referred to a common law "prima facie rule of construction" to similar effect. Construing section 2A(1) of the 1939 Act, inserted by section 1 of the 1975 Act, Mr Ogden saw no reason (p 236) why he should "interpret section 2A(1) as not



applying to actions involving public authorities, including public authorities who, prior to 1975, if not 1963, had accrued rights."

In the Court of Appeal the leading judgment, with which Sir John Donaldson MR and Nicholls LJ agreed, was given by Ralph Gibson LJ. Having carefully reviewed the legislative history, he said (pp 247-248):

"What was the effect of the Act of 1963 on rights to plead a time bar previously accrued under limitation provisions which were in force immediately before the passing of the Act of 1963 or which had been repealed in 1954, such as section 21 of the Act of 1939? No express words were used to state a legislative intention to deprive any person of such an accrued right. Nevertheless, it is, in my view, clear that that purpose was intended and achieved to an extent and the question is to what extent. The Act of 1963 did not merely repeal limitation provisions and enact new limitation provisions, as did the Act of 1954 or the Malaysian statute considered in *Yew Bon Tew v Kenderaan Bas Mara* [1983] 1 AC 553 had done, but enacted new provisions to be applied to continuing limitation provisions in a particular category of action, namely, personal injury and fatal claims, and then only if the new special requirements were satisfied. By section 6 the new provisions were made to have effect in relation to 'any cause of action which accrued before the passing of this Act' and it is not possible in my view to regard those words, considered in the context of the whole of the Act of 1963, as not including causes of action in respect of which a right to plead a time bar had already accrued.

By providing that section 1 of the Act 'shall have effect' in relation to any cause of action which accrued before the passing of the Act, including a cause of action in respect to which a right to plead a time bar has accrued, Parliament demonstrated an intention to interfere with such rights retrospectively for the purpose of this Act but such rights will only be affected if they are caught by the words of section 1 itself. What effect on what accrued rights of this nature is section 1 shown to have had?" The Court of Appeal, like the deputy judge, was bound by *Knipe*, although (p 251) it criticized Lord Denning's reasoning, and it held that neither the 1963 Act nor the 1975 Act had deprived the defendant of its right to rely on the statutory bar which had accrued to it under section 21 of the 1939 Act in April 1944.

In the House of Lords the leading opinion was given by Lord Bridge of Harwich and the other members of the House (Lord Fraser of Tullybelton, Lord Brightman, Lord Ackner and Lord Oliver of Aylmerton) agreed with him. At p 265 Lord Bridge defined the issue:

"Thus the critical question to be determined in this appeal is whether anything in the series of statutes dealing with limitation of actions leading up to the 1980 consolidation, each of which was passed to ameliorate aspects of the law believed to

operate unjustly, has had the effect of removing retrospectively the bar to the widow's action which accrued to [the defendant's predecessor] pursuant to section 21 of the Act of 1939."

Lord Bridge (p 268) thought it "beyond question that the Act of 1963 operated retrospectively, when the appropriate conditions were satisfied, to deprive a defendant of an accrued time bar in respect of a claim for damages for personal injuries in which the cause of action had accrued since 4 June 1954 and which had, therefore, been subject to the three year period of limitation introduced by the Act of 1954.



This is the combined effect of the relevant provisions of sections 1, 6 and 15 ...". He continued (pp 269-270):

"In considering what, if any, further retrospective operation in depriving defendants of accrued time bars can be ascribed to any provision in the Act of 1963, I find it quite unrealistic to examine in isolation the special case of the cause of action in a claim for damages for personal injuries which accrued before 1954 against an authority entitled to the protection of section 21 of the Act of 1939 without considering at the same time the case of a pre-1954 cause of action in a personal injury claim accruing against an ordinary defendant and subject therefore to the six year period of limitation prescribed by the unamended section 2(1) of the Act of 1939. The point that most troubled me in the course of the argument was what, as it seemed to me, would be the absurdity of attributing to the legislature an intention to give retrospective effect to the new limitation provisions so as to deprive an ordinary defendant of the right to rely on a time bar accrued under the unamended provisions of the Act of 1939 but at the same time to leave intact the defence of a public authority acquired by virtue of the special position that public authorities previously enjoyed under section 21 of the Act of 1939 in regard to limitation of actions. The philosophy which was once thought to justify the distinction between public and private defendants in this regard had fallen wholly into disrepute when the distinction was swept away in 1954, and, so far as I am aware, has never subsequently regained any reputable currency. Hence, if the distinction was reintroduced in relation to the retrospective operation of the Act of 1963, it surely can only have been by some accident of inadvertent draftsmanship. It is for this reason that I should strive to avoid construing the Act as effecting such a distinction unless plainly compelled by its language to do so."

Thus the decision of the House rested (see also p 270 E-G) on the premise that no relevant distinction was to be drawn between the pre-1954 public authority time bar and the pre-1954 six year time bar. Lord Bridge echoed (pp 270, 275) the Court of Appeal's criticism of *Knipe* and expressed his conclusion in a passage which, despite its length, I must quote (pp 274-275):

"To my mind the key question is to determine the extent to which section 3 of the Act of 1975 was intended to give retrospective effect to the earlier sections embodied by way of amendment of the Act of 1939. It will have been observed that section 3(1) and (2) of the Act of 1975 use the same terms as section 6(1) and (3) of the Act of 1963. This correspondence adopts precisely the Law Reform Committee's recommendation in paragraph 147 of their report. Reliance is placed on this by the counsel for the widow, but, by itself, it seems to me a neutral factor. It is clear that, for the same reasons as I have expressed earlier in relation to section 6 of the Act of 1963, section 3 of the Act of 1975 was intended to have *some* retrospective effect. If the Act of 1975 had been the next relevant statute immediately following the Act of 1954

without the intervening Act of 1963, I should have taken precisely the same view of its effect as that expressed by Mr Ogden QC. In those circumstances, section 21 of the Act of 1939 having already been repealed, there would, as I think, have been no effective counter to the argument that the generality of the language of the new section 2A of the Act of 1939 in the light of the retrospective effect given to it by section 3 of the Act of 1975, had swept away all time bars in personal injury actions previously acquired since 1939, leaving all causes of action accruing since that date to be determined by the application of the new statutory provisions. But it must be legitimate and



necessary to construe the Act of 1975 in the light of the preceding legislative history. To give full effect to the remedies which the Law Reform Committee proposed in order to correct the defects which they discovered in the operation of the regime for the limitation of personal injury actions under the Act of 1963 as amended by the Law Reform (Miscellaneous Provisions) Act 1971 it was clearly necessary, for the reasons they explained in paragraphs 137-146 of their report, to embody in the new statute transitional provisions giving the benefit of the new regime to plaintiffs whose causes of action had accrued during the period governed by the preceding regime, i.e. at any time between 1954 and 1975.

Thus, plaintiffs whose causes of action had accrued between those dates would be entitled, where appropriate, to the exercise of the court's discretion under section 2D of the Act of 1939, they would not require the leave of the court to sue and their date of knowledge would be determined under the provisions of section 2A(6) to (8). All this was an essential part of curing the defects which the Law Reform Committee had exposed in the state of the law as they found it. But there is not the slightest hint in the report that the extent of the retrospective operation of the Act of 1963 was an aspect of the law calling for any remedial action. It is in this negative sense that the report seems to me to give support to the case for the board.

Consistently with the presumption that a statute affecting substantive rights is not to be construed as having retrospective operation unless it clearly appears to have been so intended, it seems to me entirely proper, in a case where some retrospective operation was clearly intended, equally to presume that the retrospective operation of the statute extends no further than is necessary to give effect either to its clear language or to its manifest purpose. Construing sections 2A to 2D of the Act of 1939 in the light of section 3 of the Act of 1975, I think that full effect is given both to the language and to the purposes of the legislation if it is held retrospectively applicable to all personal injury actions previously governed by the three year limitation period under the Act of 1954, whether as then enacted or as amended by the Act of 1963. Conversely, I can find nothing in the language or discernible purposes of the statute which leads clearly, let alone unavoidably, to the conclusion that defendants previously entitled to rely on the accrued six year and one year time bars under the original Act of 1939 which the Act of 1963 left intact were intended to be deprived of those accrued rights by the Act of 1975."

RUNNING OF TIME AND COMMENCEMENT OF ACTIONS.

Once an action has accrued, as a general rule time begins to run provided that there are both competent plaintiff and defendant and until when the suit is filed and not when service is effected. when an action has accrued and the statute has begun to run, there being competent parties, it will continue to run unless there is an intervening

circumstance which may cause a disability such as a party becoming of unsound mind.

In other exceptional circumstances the running of time is postponed until the plaintiff has discovered a fraud or concealment, a mistake which would not be realized or discovered with reasonable diligence. If on the date when the plaintiff of action accrued, the person to whom it accrued was under a disability, the action may be brought any time within six years when the disability ceased.



Once the limitation period has expired, the existing proceedings may be amended provided that the substance of the allegations remain constant and such amendment does not introduce any new cause of action.

The limitation of Actions removes a plaintiff's remedy and in some cases, his right at a fixed period of time from the accretion of the cause of action. This requires precise rules for calculation of the period. *In Nyabungu Tin Mines Ltd V A.G*, the court held that the day of the accident is to be excluded from the computation of the limitation period. In addition sec. 38 1 (b) of the Interpretation Act excluded a Sunday or a public holiday if they came at the end of the limitation period.

As a general principle, the courts will disregard parts of the day in calculating the expiry of the limitation period. When the plaintiff pleads facts from which reasonable inferences can be made that the suit is not time barred, then the issue of limitation becomes a triable issue which should be tried and determined after hearing the evidence on the matter as it was held in the case of *SAYIKO MUROMA V YOBAN KUKU (1985) H.C.B. 68*.

EFFECT OF EXPIRATION OF THE LIMITATION PERIOD

The general effect of expiration is that the remedy is barred but the plaintiff's right is not extinguished. While the plaintiff is precluded from seeking a judicial means of enforcement of his right, his right is in all other respects recognized by law and he or she will be free to enforce it by any other lawful means e.g. the use of an alternative cause of action, self help or Alternative Dispute Resolution. In some circumstances the expiration of the limitation period causes the plaintiff to lose his or her substantive rights.

DEFENCES TO LIMITATION

The defences to limitation are available to any party who has been caught by the limitation period.

Order 7 rule 6 of the CPR provides that:

"Where the suit is instituted after the expiration of the period prescribed by the law of limitation, the plaintiff shall show the grounds upon which exemption from that law is claimed."

Disability: One of the main defences to limitation is disability. According to section 21 of the Limitation Act, if on the date when any right of action accrued for which a period of limitation is prescribed by this Act the person to whom it accrued was under a disability, the action may be brought at any time before the expiration of six years from the date when the person ceased to be under a disability or died, whichever event first occurred, notwithstanding that the period of limitation has expired".

Under sec 1(3) of the limitation Act, a person shall be deemed to be under a disability while he or she is an infant or of unsound mind.



Infancy is another word used to mean a minor and the Law on children provides that children are persons under the age of 16. However the Children Act provides that a child is a person below the age of 18 years.

A person is of unsound mind if he or she is by reason of a mental disorder incapable of managing and administering his property affairs. Under section 1(4) of the Limitation Act, a person shall be conclusively presumed to be of unsound mind while he or she is detained in pursuance of any enactment authorising the detention of persons of unsound mind or criminal lunatics.

EFFECTS OF DISABILITY.

Disability does not prevent the person affected from bringing or defending an action although he or she may not do so on his or her own behalf. In case of a plaintiff who suffers from disability, the action will be by a next friend as provided under Order 29 rule and in case of a defendant suffering from a disability by a guardian ad litem as provided under Order 29 rule 3.

Where any right of action has accrued for which a period of limitation is prescribed, the person under disability may bring an action within 6 years after ceasing to be under disability.

However, section 21(2) of the Limitation Act provides that:

“In the case of actions for damages for negligence, nuisance or breach of duty (whether the duty exists by virtue of a contract or of provision made by or under an enactment or independently of any contract or any such provision), where the damages claimed by the plaintiff for the negligence, nuisance or breach of duty consist of or include damages in respect of personal injuries to any person—

(a) subsection (1) shall have effect as if for the words “six years” there were substituted the words “three years”.

If the plaintiff is not suffering from disability when the cause of action arises, any subsequent disability will not suspend the running of time. In addition where the plaintiff does suffer from a disability when his right of action accrues, ceases to do so but then becomes disabled again, time begins to run as soon as the disability ceases and its subsequent recurrences do not prevent time from continuing to run as was held in the case of **Kirby v Leather** [1965] 2 All ER 441; [1965] 2

Q.B. 367.

In case of **Joweria Namaganda V A.G. (1996)2 KALR 83** Court held that disability is a triable issue requiring both parties to the suit to bring necessary evidence in order to resolve the issue of whether or not their existed disability.

The following is an extract from the recent English case of **Maga (By his Litigation Friend, The Official Solicitor to the Supreme Court) v Trustees of the Birmingham Archdiocese of the Roman Catholic Church [2009] EWHC 780 (QB)**:

“FACTS:-

The Claimant was abused as a boy by an assistant priest, Father Clonan, serving at a church in Coventry. He had suffered brain damage at birth, and was recognised as educationally



subnormal. He could not read or write. It was alleged that in 1974, a Father McTernan, Father's Clonan's immediate superior was informed by the parents of another boy, M, that M had been abused by Father Clonan, but he had taken no action. It was uncertain when the abuse of the Claimant began, but it was pleaded as occurring over a period of many months in about 1976. In that year, the Claimant was moved to a series of special schools owned by Pitt House Schools Limited (also a Defendant), where he alleged abuse.

In 1988 there was an allegation made by an inmate at Grendon Underwood Prison that he had been abused by Father Clonan. In July 1992 further allegations were brought to the attention of Father Clonan himself by parents of a child who alleged abuse. Father Clonan fled the country. In September 1996, Father McTernan died. In December 2000, following publicity about the case, the Archdiocese published a statement to the effect that Father Clonan was a danger to children. On the 30th November 2000, the Claimant made a statement to the police, but it was not until the 31st July 2006 that a Letter of Claim was sent to the Defendants and proceedings were issued on the 26th September 2006. The claim was framed in vicarious liability and negligence.

HELD:-

Mr Justice Jack dealt with three separate issues, limitation, liability and damages.

Limitation

The Claimant's counsel submitted that the Claimant had been under a disability within the meaning of Section 28(1) of the **Limitation Act 1980**, alternatively he could rely on Sections 11 and 14 of the same Act, or he could rely on the court's discretion to disapply the limitation period pursuant to Section 33 of the **Limitation Act 1980**. Jack J said that the **Mental Capacity Act 2005** amended the relevant provision of the **Limitation Act 1980**, but it did not come into until the 1st October 2007, so the issue was to be determined in accordance with a provision that had since been amended. Jack J considered sections 28(1) and 38(2) to (3). Section 38(3) had been amended by the **Care Standards Act 2000** but the amendment was not material. Section 38(2) which included the words "of unsound mind" were replaced by the **Mental Capacity Act 2005** – section 67(1) and Schedule 6, with the words:-

".....lacks capacity (within the meaning of the Mental Capacity Act 2005) to conduct legal proceedings."

Section 38(3) was repealed. The Mental Capacity Act 2005 provided by section 2(1) that:-
"2(1) For the purposes of this Act a person lacks capacity in relation to a matter if at the material time, he is unable to make a decision for himself in relation to the matter because of an impairment of, or a disturbance in the functioning of, the mind or brain."

The relevant matter was the conduct of legal proceedings. Justice J referred to relevant case law beginning with the case of **Kirby v Leather [1965] 2 QB 367** and then moving onto the unreported case of **White v Fell 12th November 1987** which was only available from its citation in **Masterman-Lister v Brutton [2003] 1 WLR 1511**. Boreham J had said that the expression “incapable of managing her own affairs and property” had to be construed in a common sense way. The fact that the Claimant could not manage a large sum of money was not conclusive.



The Claimant had to be capable of insight and understanding of the fact that she required advice. Having identified the problem, the Claimant had to seek an appropriate adviser, and finally the Claimant needed sufficient mental capacity to understand and make decisions based on such advice as she might receive.

In **Masterman-Lister** the Court of Appeal said that the issue of mental capacity might be different at different times and for different purposes. Adults were presumed to have capacity and the right of a person to conduct his own litigation and manage his property, were not lightly to be taken away. The court should only take over the decision making function of an individual where it was shown on the balance of probabilities that such a person did not have the capacity sufficiently to understand, absorb and retain information (including advice) relevant to the matters in question, sufficiently to enable him or her to make decisions based upon such information. However the test was issue specific. In another case, **Lindsay v Wood [2006] EWHC 2895** the judge had to consider the issue of capacity in relation to a brain damaged Claimant. He considered the scenario where the Claimant would have to take advice from his advisers on whether to accept an offer and the consequences of not doing so. The Claimant was found to be a patient. Jack J said that it would usually be wrong to distinguish between the capacity to conduct proceedings after an action has been commenced and the capacity to conduct a claim up to and including the commencement of the action. The burden was on the Claimant to establish that he was under a disability.

Jack J turned to the Claimant's evidence, which was given by video link, and thereafter near to the court. A striking feature of his evidence was that he was quite unable to deal with questions as to contradictions in his evidence and as to what he had said on other occasions. He had had a previous claim for a road traffic accident and had accepted the very first offer. His medical notes pointed to support being put in place for him and to his being very vulnerable. He had a low IQ and had been described as having a mild learning disability. However he knew how to use his disability to his advantage.

Jack J considered the evidence of the Claimant's psychiatrist, Dr Shapiro, who said that the Claimant would not understand whether or not to accept offers of settlement. Professor Murphy for the Defendants took a contrary view. There was also a Dr Gill, who was instructed by Pitt House Schools Limited. In a joint statement he agreed with Professor Murphy that the Claimant was a borderline case.

Jack J considered the three situations, in which capacity could arise in connection with personal injury litigation. In relation to whether the Claimant had the mental capacity to manage a large sum of money, it was clear that that he did not.

In relation to his capacity to manage litigation, he was plainly in a better position than the Claimant in **Kirby v Leather**. The position was not as clear as that in **Masterman-Lister**. Jack J concluded that the Claimant did not have mental capacity to conduct litigation, and therefore



was of unsound mind for the purpose of section 38(2) of the Limitation Act 1980 prior to the issue of proceedings.

Sections 11 and 14 of the Limitation Act 1980

Jack J said that the Claimant did not need to rely on these sections. The Claimant's counsel had submitted that the failure of Father McTernan to report that another boy had been abused in 1974 was an "act or omission" within the meaning of section 14(1)(b). The Defendant's counsel had relied upon the case of **Dobbie v Medway Health Authority [1994] 1 WLR 1234** but Jack J said that the circumstances in this case were different. The Claimant did not know the facts, neither did he know that there had been negligence on the part of the Defendant. Therefore the limitation question was to be answered in his favour, his claim in negligence would not be barred by Section 11.

Section 33 of the Limitation Act 1980

Jack J said that the first issue was the prejudice to the Claimant by reason of his action being time barred, and the other was the prejudice to the Church caused by disapplying the limitation period. In **Horton v Sadler [2007] 1 AC 307** the House of Lords held that section 33 conferred a wide and unfettered discretion empowering the court to disapply the application of Section 11.

In **A v Hoare [2008] 1 AC 844** Lord Brown said that there was a distinction to be drawn between a case where the abuser had been convicted and a case where the complaint had come out of the blue with no apparent support for it. In **AB and Others v Nugent Care Society, 30 January 2009 Manchester District Registry** Irwin J reviewed recent developments in Section 33.

Jack J said that in this view there were three matters which merited attention:-

- The conduct of the Claimant
- The conduct of the Defendant
- The possibility of having a fair trial

The delay in this case was very long, 30 years after the alleged abuse. The Claimant went to solicitors in 2003 but the claim was not issued until 2006, and there was no satisfactory explanation for the delay. However that delay after so many years had little effect.

In relation to the cogency of the evidence, the Claimant's evidence was difficult to assess. He was prone to exaggeration. The passage of time had not created those difficulties, although it had undoubtedly increased them. However Father Clonan would never have given evidence, even if the trial had been held back in the seventies.

His removal of himself from the jurisdiction strongly supported the allegation that he was an abuser. The Church's position was that it was not admitted that Father Clonan was an abuser, however it was not denied either. The Church had issued a statement in 2000 saying that Father Clonan was a risk to children. Therefore the passage of time had not disadvantaged the Church. There was also the evidence of the other boy, M and his father, who had complained to Father McTernan in 1974. A very strong case could be made that the parents of M would not have invented their complaint to Father McTernan.



In relation to the conduct of the Defendant, Father Clonan disappeared in 1992 after an allegation was made against him and eventually had gone to Australia. Neither the police nor the church were able to question him. His file had been lost. The Church had recognised in a public statement that the allegations against Father Clonan were probably true. Jack J considered the other issues in Section 33(3). The proceedings should have been brought much more quickly but that delay of three years carried little weight.

Jack J had also been referred to the changes in the law wrought by [Lister v Hesley Hall Limited \[2002\] 1 AC 215](#) and [A v Hoare \[2008\] 1 AC 844](#). If the Claimant had taken advice earlier, he might well have been advised not to sue. Jack J said that this carried weight with regard to his claim based on vicarious liability.”

ACKNOWLEDGEMENT

Acknowledgment by the defendant to the plaintiff's right will revive a cause of action. Under section 22 of the Limitation Act, where any right of action has expired, it may be revived by the acknowledgment of the rights of the plaintiff.

The theoretical basis of the development of the concept of a promise to pay on the fact of acknowledgement of the plaintiff's rights is that if the acknowledgment has been made in circumstances from which no promise to pay will be inferred, time will continue to run uninterrupted. The law further provides that any such acknowledgement shall be in writing and signed by the person making the acknowledgement as provided under section 23(1).

When a plaintiff has a claim which is statute barred and he intends to rely upon the defendant's acknowledgment, the acknowledgement should be pleaded in his plaint or statement of claim. However, for a plaintiff to plead acknowledgment, it is prudent that the defendant should plead the limitation defence in his or her pleading.

PART PAYMENT

This is also provided for in section 22 of the Limitation Act. Payment may be made in both money and money's worth. Where a person makes a part payment in acknowledgement of a debt, then the limitation period will only apply to recover the balance of the debt. In the case of [Scilendra Overseas Ltd V The Government of Sirilanka \(1977\)1 K.L.R. 565](#) Court noted that where a defendant admits to a claim, in part but disputes the rest and makes payment of the sum admitted, this is taken to be a part payment of the total of the whole claim.

Therefore, the part payment made in this case was not in respect of the whole claim but in respect of the disputed balance.

LIMITATION AGAINST GOVERNMENT AND SCHEDULED CORPORATION.

Section 3 of the Civil Procedure and Limitation (Miscellaneous Provisions) Act provides that: “(1) No action founded on tort shall be brought against—

- (a) the Government;
- (b) a local authority; or



(c) a scheduled corporation,
after the expiration of two years from the date on which the cause of action arose.
(2) No action founded on contract shall be brought against the Government or against a local authority after the expiration of three years from the date on which the cause of action arose.”

It should be noted however, that the Law governing limitation against government and other related institutions is silent on the principle of acknowledgement or part payment.

In *National Plamarcy Ltd V. K.C.C. 1979 H.C.B. 256* the Court in resolving this issue noted that a special Act proscribing time limit within which to bring actions against government, local authorities and scheduled corporations was silent with regard to section 23 of the Limitation Act which provided for acknowledgment or part payment.

FRAUD

Section 25 of the Limitation Act states that:

“Where, in the case of any action for which a period of limitation is prescribed by this Act, either—

- (a) the action is based upon the fraud of the defendant or his or her agent or of any person through whom he or she claims or his or her agent;
 - (b) the right of action is concealed by the fraud of any such person as is mentioned in paragraph (a) of this section; or
 - (c) the action is for relief from the consequences of a mistake, the period of limitation shall not begin to run until the plaintiff has discovered the fraud or the mistake, or could with reasonable diligence have discovered it;
- but nothing in this section shall enable any action to be brought to recover, or enforce any charge against, or set aside any transaction affecting, any property which—
- (d) in the case of fraud, has been purchased for valuable consideration by a person who was not a party to the fraud and did not at the time of the purchase know or have reason to believe that any fraud had been committed; or
 - (e) in the case of mistake, has been purchased for valuable consideration, subsequently to the transaction in which the mistake was made, by a person who did not know or have reason to believe that the mistake had been made.”

The question of what amounts to reasonable diligence was considered as being what the plaintiff ought to do. The plaintiff is not required to do everything possible but only do what an ordinary prudent person would do in regard to all circumstances in an action for fraud. Such case must be wholly based on fraud. An action is based on fraud for this purpose when and only when fraud is an initial element of the plaintiff's

claim.

In Kampala Bottlers V Damanico U Ltd S.C.C.A. No.22/92, the court noted that fraud must be attributable either directly or by necessary implication to the person sued and such person must be guilty of some fraudulent act or must have known of such act by somebody else and taken advantage of such act.

CONCEALMENT



The notion of concealment by fraud extends to any case where the defendant may be said to have acted dishonestly and unconscionably and this can include a situation where the wrongful act is committed cunningly. In addition deliberate commission of wrong in which it is unlikely to be discovered for some time amounts to deliberate concealment. In the case of *Shaw V. Shaw (1954) 2 Q.B 429* court noted that the mere silence by a defendant can equally amount to concealment.

MISTAKE

This goal for extending the limitation period has not been properly resolved in the courts of Law. It is necessary to distinguish cases where both parties are mistaken from those where only one party is mistaken. In the former case, time will begin to run as soon as the mistake takes effect and in the latter case time will not run until party seeking to set aside the transaction has knowledge of the mistake.

NEGOTIATIONS

When parties to an action are in negotiation, it does not stop the time from running and the parties should act prudently by lodging the case as they are negotiating. In the case of *Peter Mangeni Trading as Makerere Institute of Commerce Vs. DAPCB S.C.C.A. No. 13/95*, court noted that where negotiations are going on, the limitation time continues to run and it is still incumbent upon those who need to give documents to do so within the time allowed and they are at liberty to seek adjournments for purposes of negotiations once the suit is filed.

Likewise under recent amendments to the Civil Procedure Rules, Court is enjoined to encourage out of court settlement but this can only be done once the suit is filed and is pending before court.

APPEARANCE AND RECOGNIZED AGENTS